PROFESSIONAL PRACTICE 1

ARCH 1331

CLIENT ARCHITECT AGREEMENT + DESIGN DEVELOPMENT

Helen Duong | RMIT Architecture

(j) a requirement that the architect must inform the client how a change or amendment to the services will affect the professional fees and costs for the services;

(k) how the architect may obtain the client's authority to change or amend the services;

(l) how variations to the agreement may be made;

(m) a reservation of the right of an architect to withdraw from the provision of services under the agreement in the circumstances set out in clause 14;

(n) how the agreement may be terminated and for what reason.

(3) Subclause (2) applies to an agreement for the provision of architectural services entered into by an architect, an approved partnership or an approved company with a client on or after 1 July 2015.

5 Administering a building contract

(1) For the purposes of this clause, an architect administers a building contract for a client if—

(a) the contract concerns the construction of a building and is entered into by the client with a building practitioner; and

(b) the architect has been engaged by the client to inspect or administer the provision of services under the contract.

(2) If an architect is administering a building contract for a client, the architect must—

(a) act with integrity, fairness and impartiality in administering the building contract; and

Architects Regulations 2015
S.R. No. 28/2015
Schedule 1—Victorian Architects Code of Professional Conduct

(j) a requirement that the architect must inform the client how a change or amendment to the services will affect the professional fees and costs for the services;

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Authorised by the Chief Parliamentary Counsel
29

Australian Institute of Architects

Information guide to the client on the Client Architect Agreement (CAA2024)

This guidance note provides general information to clients to help them understand their key rights and obligations under the Australian Institute of Architect's Client Architect Agreement (**CAA2024**). This note is not legal advice and does not form part of nor affect your CAA2024 contract with the architect. You should read your CAA2024 contract carefully and if you need advice on your rights and obligations under the document, you should get independent legal advice.

The CAA2024 has been developed to assist architects and clients to formally record their agreement for delivering architectural services, as well as providing clear steps the parties need to take when things change during the delivery of those services.

In each state and territory, the *Architects Act* and the relevant Architects Registration Board governs the professional registration and conduct of architects—this includes an obligation in most states and territories to enter into a written agreement with the client, which sets out specified minimum provisions. Your architect must be registered in the state or territory where your site is located. A person who is not registered with the applicable registration board cannot call themselves or claim to be an architect. You can check online whether your architect is registered with the registration board in the relevant state or territory.

Defined terms throughout the CAA2024 are in **Bold.** For definitions, see page 7 of the contract document. All terms that are capitalised have the corresponding meaning that is described in Section M: *Definitions* of the conditions.

ALTRUISM

The value of engaging an architect under the CAA2024

An architect is a trained, experienced and qualified professional and their professional conduct is governed by legislation and a regulatory body (a registration board) in each state and territory, and a professional code of conduct in some states and territories. In addition, an architect who is a member of the Australian Institute of Architects is also bound by the Institute's Code of Professional Conduct and has access to additional professional resources and guidance they can draw on to support their professional services to you under the CAA2024.

In most states and territories, architects must also take out and hold professional indemnity insurance that covers their professional services. This gives every client confidence in their architect and the professional services to be delivered under the CAA2024.

REGISTRATION

Disclaimer: *This Information for clients is intended as general guidance only to help you understand the CAA2024. It is not legal advice and you should not rely on this guide as an alternative to reading and understanding the CAA2024 document. The Institute endeavours to publish content that is accurate at the time it is published but does not accept responsibility for content that may or has become inaccurate over time.*

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Why the Architects Act Requires a Client Agreement

the content or form of the work, document or publication.

Division 2—Client relations

4 Client agreements

(1) An architect must not provide architectural services for a client unless the architect, or an approved partnership or approved company of which an architect is a member, director or employee, has entered into a written agreement with the client for the provision of those services.

(2) An agreement must include the following—

(a) the parties to the agreement;

(b) the name, registration number and contact details of the architect responsible for providing the services;

(c) the scope, nature and specific requirements of the services;

(d) the timeframes for providing the services;

(e) how the professional fees and costs of the services will be calculated;

(f) where possible, reasonable estimates of disbursements;

(g) how professional fees and costs, including disbursements, will be paid;

(h) how the architect may inform the client of progress in the provision of the services;

(i) how the client may authorise the architect to proceed with the services, or any part of the services;

(j) a requirement that the architect must inform the client how a change or amendment to the services will affect the professional fees and costs for the services;

(k) how the architect may obtain the client's authority to change or amend the services;

(l) how variations to the agreement may be made;

(m) a reservation of the right of an architect to withdraw from the provision of services under the agreement in the circumstances set out in clause 14;

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(a) act with integrity, fairness and impartiality in administering the building contract; and

Registration

Professional Indemnity (PI and Public Liability-Insurance.

Access to Profession

Higher learning, discplinary knowledge, regulation, autonomy altruism.

Commitment to mutual communication

Commitment to mutual communication

The CAA Connects Professional Status to Professional Responsibility

the content or form of the work, document or publication.

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(2) An agreement must include the following—

(a) the parties to the agreement;

(b) the name, registration number and contact details of the architect responsible for providing the services;

Scope

(c) the scope, nature and specific requirements of the services;

Time

(d) the timeframes for providing the services;

Cost

(e) how the professional fees and costs of the services will be calculated;

(f) where possible, reasonable estimates of disbursements;

How will payment occur

(g) how professional fees and costs, including disbursements, will be paid;

(h) how the architect may inform the client of progress in the provision of the services;

(i) how the client may authorise the architect to proceed with the services, or any part of the services;

(j) a requirement that the architect must inform the client how a change or amendment to the services will affect the professional fees and costs for the services;

(k) how the architect may obtain the client's authority to change or amend the services;

(l) how variations to the agreement may be made;

Changes are inevitable and part of the contract

It is not fixed

(m) a reservation of the right of an architect to withdraw from the provision of services under the agreement in the circumstances set out in clause 14;

(n) how the agreement may be terminated and for what reason.

Possibility of termination and withdrawal

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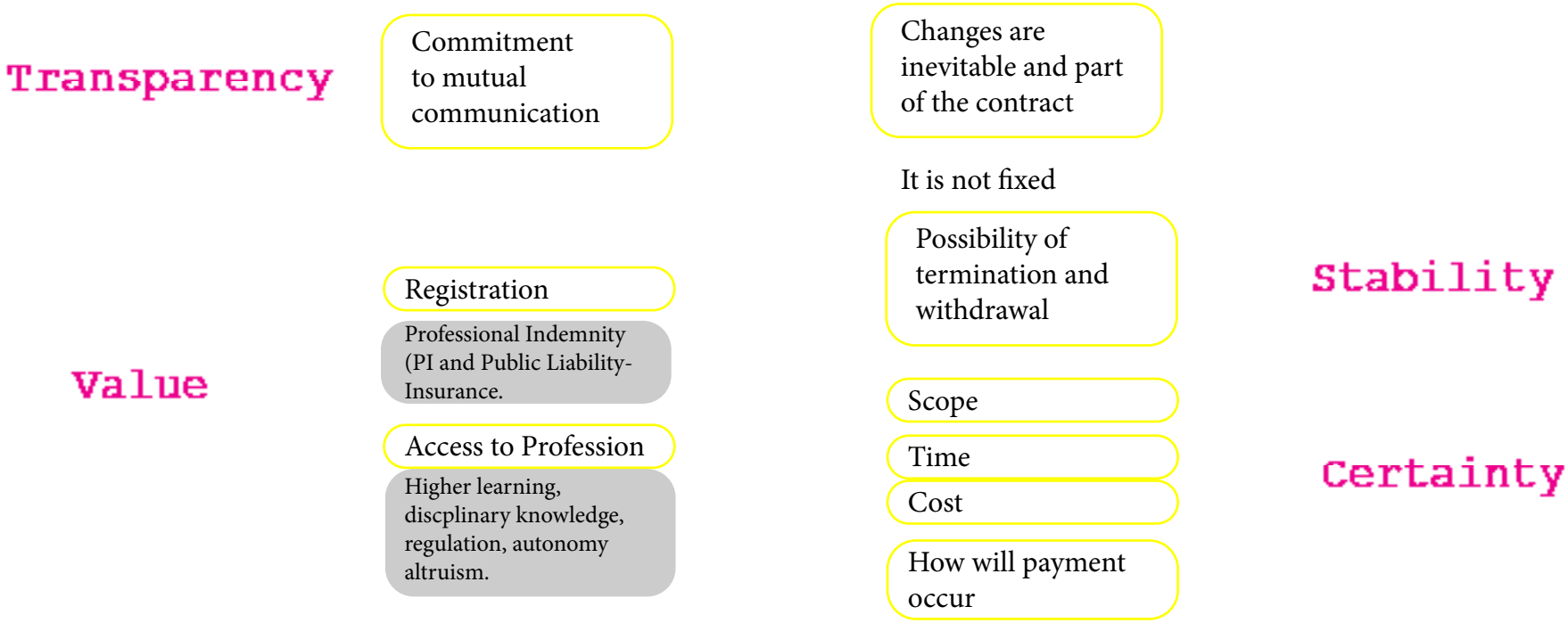
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(a) act with integrity, fairness and impartiality in administering the building contract; and

The Agreement Anticipates Change



A Contract Establishes the Rules for a Professional Relationship

OFFER = ACCEPTANCE

$$E = MC^2$$

$$\frac{E}{M} = C^2 \qquad \sqrt{\frac{E}{M}} = C$$

$$\frac{\sqrt{\frac{E}{M}}}{C} = \frac{C}{C} = 1$$

The contract is a mechanism that allows these variables to have equal weighting.

The contract outlines known fixed elements,the ability for them to change and a process for how they can change.

The value of the contract and of architecture is that it is possible to come to an agreement.

?

As architects no longer administer full contract, what value are we still providing?

!

If architecst better articulated this value, they could justify charging for it.

Agreement: Making Responsibilities Explicit

Hospitals

Medication

Pharmaceutical Companies

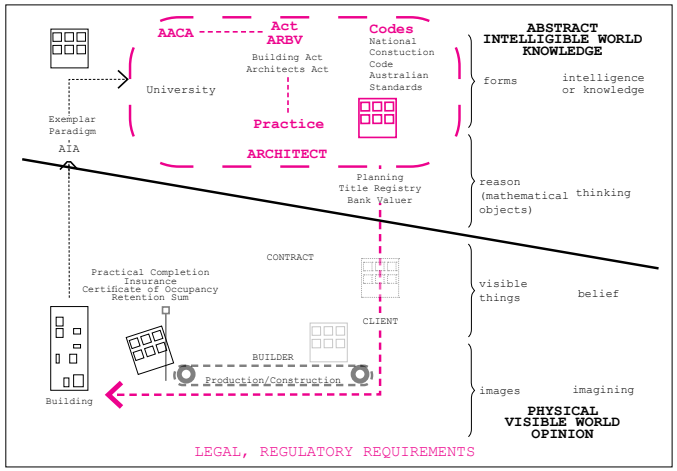
Specialist

Health Insurance

Medicare

Gives access to...

Medical Knowledge

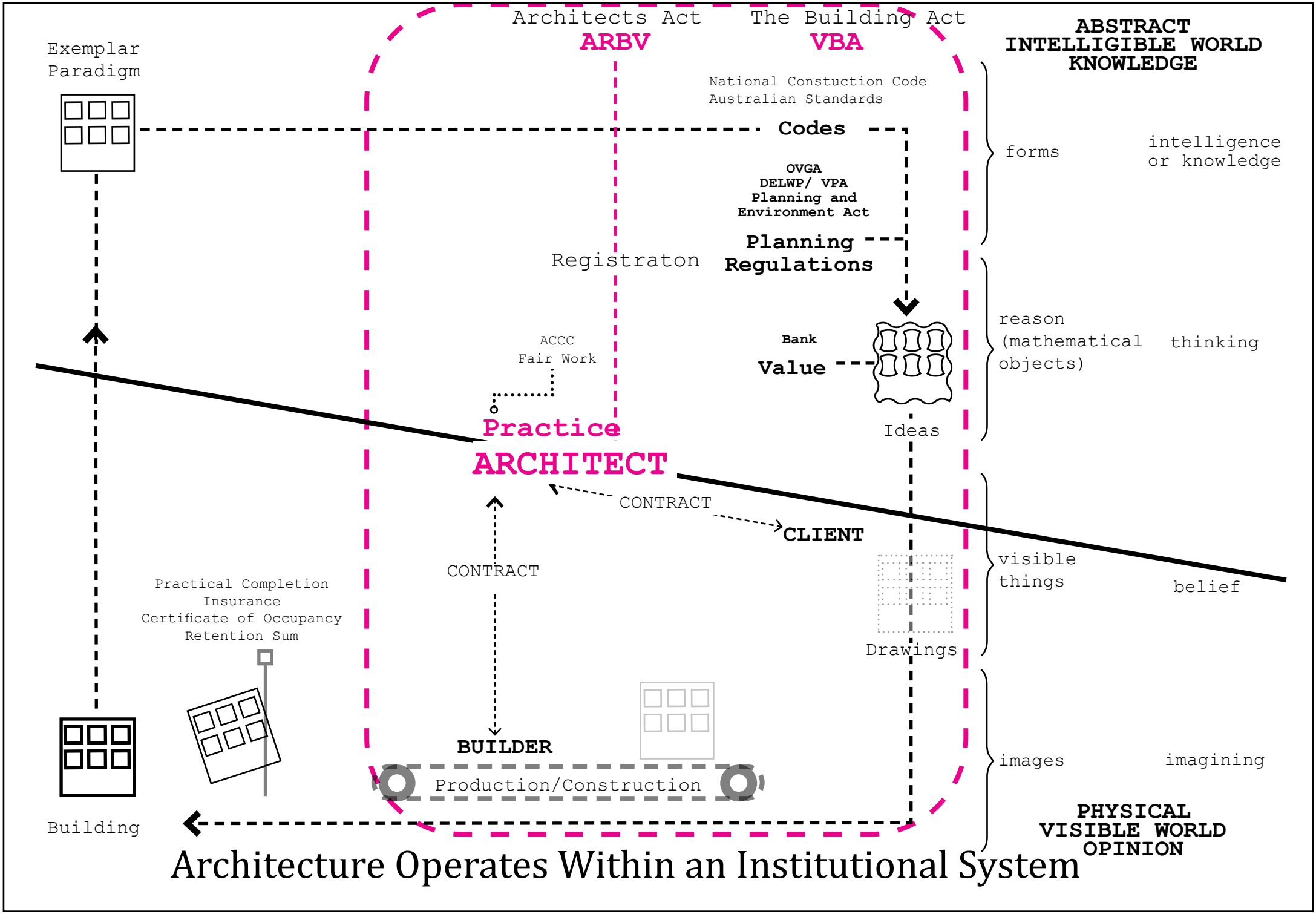


Doctor

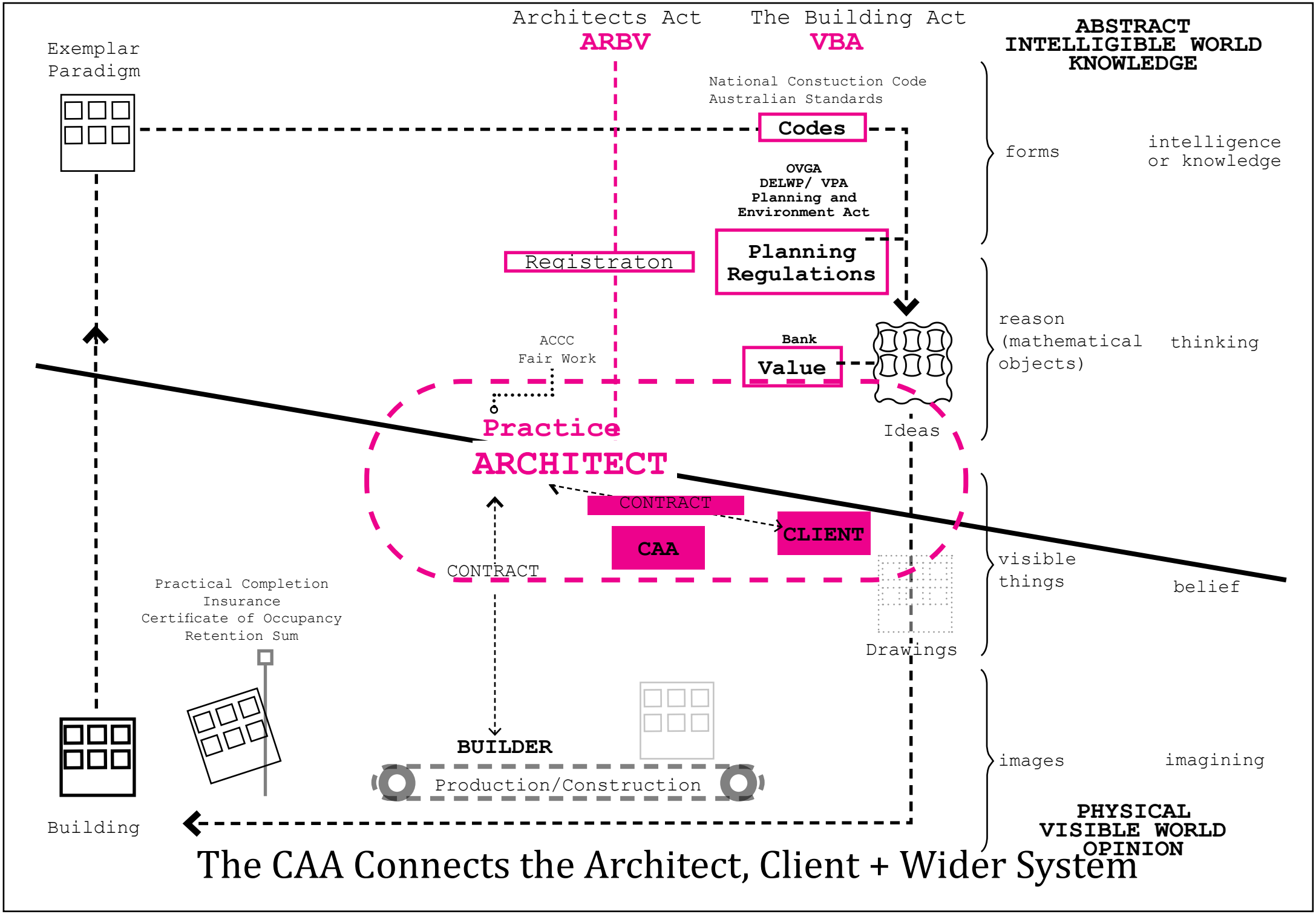
Architect

Patient/Client

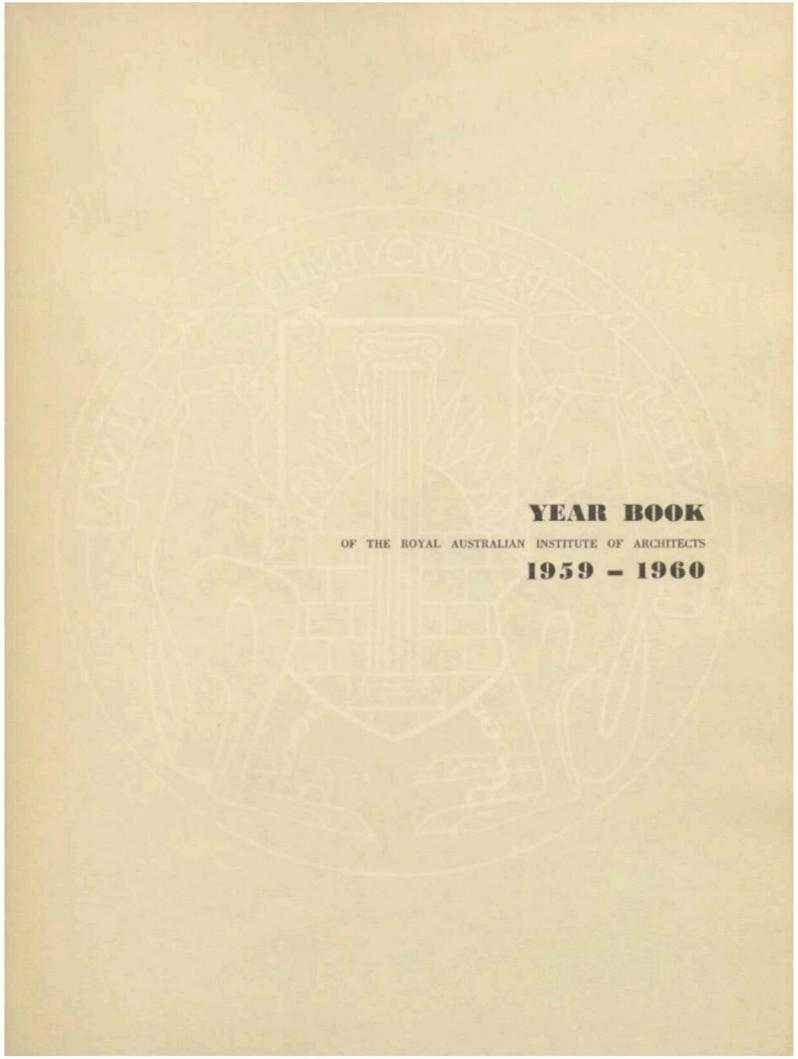
Professionalism: Access to a System of Knowledge

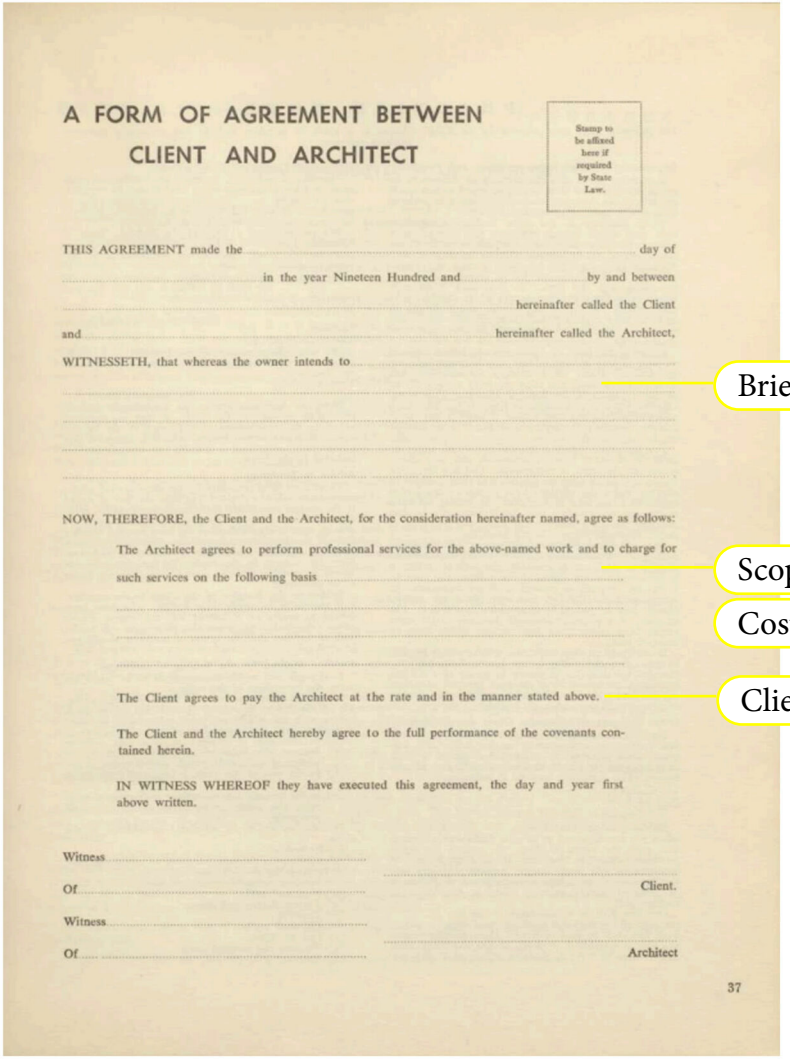


Architecture Operates Within an Institutional System



The CAA Connects the Architect, Client + Wider System





A FORM OF AGREEMENT BETWEEN
CLIENT AND ARCHITECT

Stamp to be affixed here if required by State Law.

THIS AGREEMENT made the ..... day of
..... in the year Nineteen Hundred and ..... by and between
..... hereinafter called the Client
and ..... hereinafter called the Architect,
WITNESSETH, that whereas the owner intends to .....
.....
.....
.....
.....
.....

NOW, THEREFORE, the Client and the Architect, for the consideration hereinafter named, agree as follows:

The Architect agrees to perform professional services for the above-named work and to charge for such services on the following basis .....
.....
.....
.....

The Client agrees to pay the Architect at the rate and in the manner stated above.

The Client and the Architect hereby agree to the full performance of the covenants contained herein.

IN WITNESS WHEREOF they have executed this agreement, the day and year first above written.

Witness .....
Of ..... Client.
Witness .....
Of ..... Architect

37

Brief / Scope

Scope

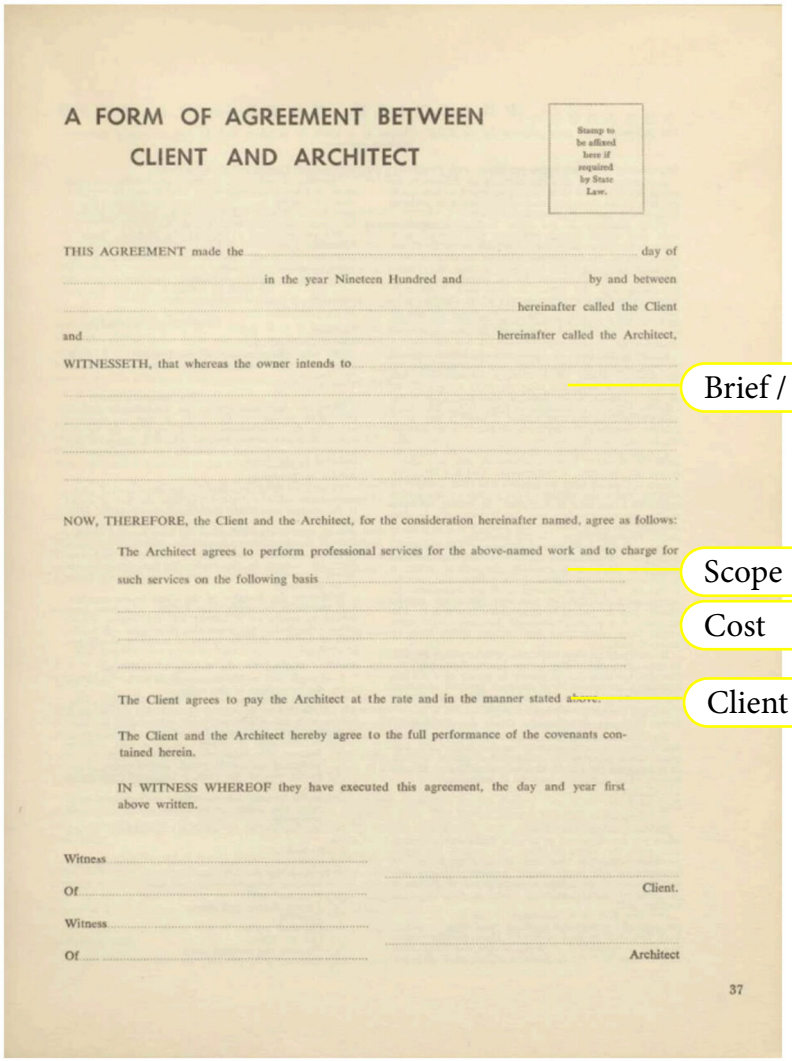
Cost

Client will pay

Sydney Opera House: What Was Agreed?

INCLUDED

UNCLEAR



A FORM OF AGREEMENT BETWEEN
CLIENT AND ARCHITECT

Stamp to be affixed here if required by State Law.

THIS AGREEMENT made the ..... day of
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and ..... hereinafter called the Architect,
WITNESSETH, that whereas the owner intends to .....

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The Client agrees to pay the Architect at the rate and in the manner stated above.

The Client and the Architect hereby agree to the full performance of the covenants contained herein.

IN WITNESS WHEREOF they have executed this agreement, the day and year first above written.

Witness .....
Of ..... Client.
Witness .....
Of ..... Architect

37

Brief / Scope

Scope

Cost

Client will pay

Communication — Letters?

Time — Renegotitate contract

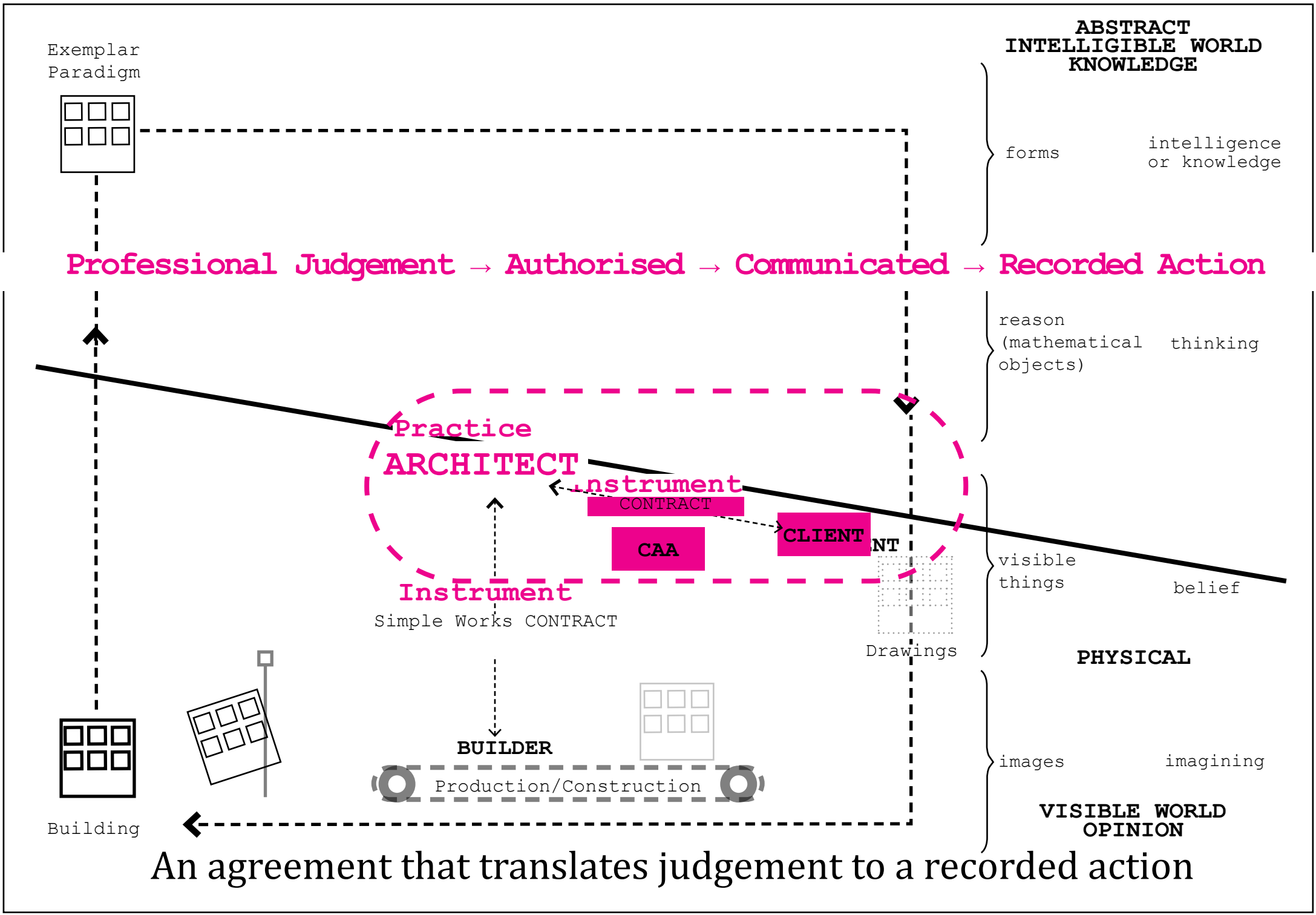
Changes — Renegotitate contract

termination and withdrawal — Court settlement

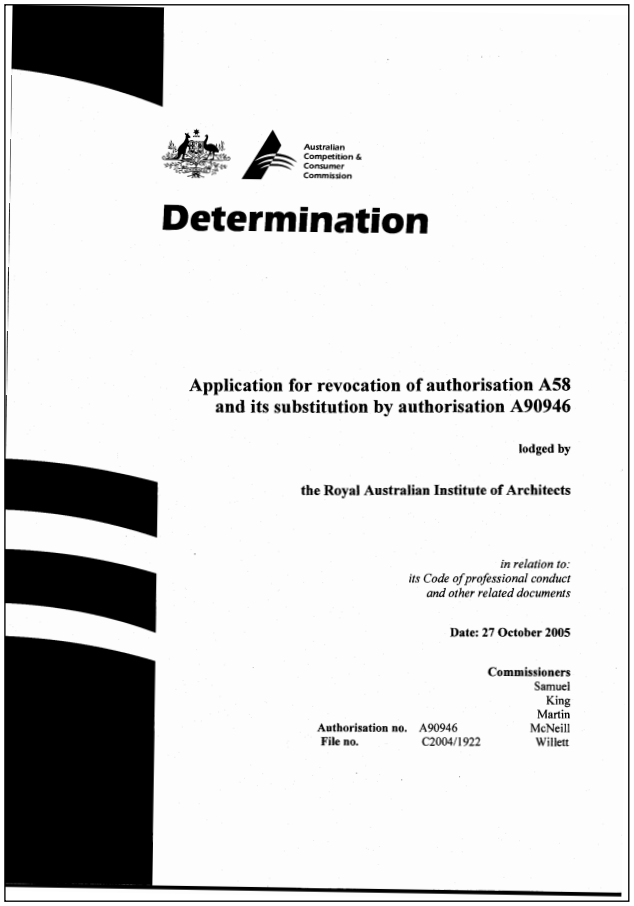
How will payment occur — Renegotitate contract

HENCE THE SYDNEY OPERA HOUSE AS A CASE STUDY

Sydney Opera House: What Happens When Scope is Unclear or Changes?



An agreement that translates judgement to a recorded action



Australian Competition & Consumer Commission

Determination

Application for revocation of authorisation A58 and its substitution by authorisation A90946

lodged by

the Royal Australian Institute of Architects

in relation to:
its Code of professional conduct and other related documents

Date: 27 October 2005

Commissioners
Samuel
King
Martin
McNeill
Willett

Authorisation no. A90946
File no. C2004/1922

Executive Summary

The Australian Competition and Consumer Commission (ACCC) has granted authorisation to various activities and arrangements engaged in by the Royal Australian Institute of Architects (RAIA), including its proposed new *Code of professional conduct*, for a period of six years.

The RAIA's application

On 8 December 2004, the RAIA, on its own behalf and on behalf its current and future members lodged an application for a revocation of authorisation A58 and its substitution by authorisation A90946.

Essentially, the RAIA's substitute authorisation sought to allow the RAIA's current and future members to engage in conduct giving effect to the contracts, arrangements and understandings as provided for in the RAIA's:

- proposed new Code of professional conduct
- memorandum and articles of association
- regulations and by-laws
- client and architect agreements and user guides relating to those agreements and
- guidelines for RAIA endorsed architectural competitions.

The ACCC's draft determination

On 26 July 2005, the ACCC issued a draft determination in relation to the RAIA's application.

For the most part, the ACCC accepted the RAIA's proposed arrangements were likely to provide a benefit to the public. However, the ACCC was of the view that some aspects of the arrangements, in particular: standards 2.5, 4.3, 4.5 and 4.6 which were included in the RAIA's proposed new Code and; the RAIA's fee guidance material, had the potential to generate a degree of anti-competitive detriment which was sufficient to outweigh the public benefits of the arrangements.

Overall, therefore, the ACCC could not be satisfied that the public benefits likely to result from the substitute arrangements would outweigh their potential anti-competitive detriments and proposed to deny the RAIA's application.

However, in its draft determination, the ACCC stated that:

- if Standards 2.5, 4.3, 4.5 and 4.6 of the RAIA's proposed new Code were removed or appropriately amended and
- the fee graphs were severed from the authorisation

the proposed conduct would be more likely to produce a net public benefit such that the ACCC may grant authorisation.

In response to the ACCC's draft determination, the RAIA lodged a further submission - *Application for Substitute Authorisation (Supplement 2)* - in which the RAIA proposed a number of amendments to its original application. The most significant of these changes being that the RAIA:

Proposed new Code of professional conduct

- re-worded Standards 2.5, 4.3 and 4.5 of its proposed new Code
- deleted Standard 4.6 from its proposed new Code
- sought a transition period for the introduction of its proposed new Code

Fee guidance material

- withdrew the two fee guide documents which contained the fee graphs (Practice Note – Fee guide no 8 and Practice Note – Small projects fee guide) from its application
- sought authorisation for an alternative fee guidance program and
- sought a transition period to phase out the old fee guides and introduce the alternative program.

The ACCC's final determination

In order to grant authorisation to the conduct proposed in the RAIA's application for revocation and substitution, the ACCC must be satisfied that the proposed arrangements would result in a benefit to the public that outweighs any detriment to the public constituted by any lessening of competition arising from the proposed arrangements.

For the reasons outlined in section 8 of this determination, the ACCC considers that the following aspects of the RAIA's application are likely to provide some public benefits:

- RAIA memorandum and articles of association
- RAIA regulations and by-laws
- RAIA client and architect agreements and user guides relating to those agreements and
- RAIA guidelines for RAIA endorsed architectural competitions

However, the ACCC could not be satisfied that these benefits would continue were these documents 'amended from time-to-time' which the RAIA has sought as part of its application.

The ACCC also considers that the amended version of the proposed new Code which was lodged with the ACCC on 9 September 2005, satisfactorily conveys the intended meaning of the proposed new Code, such that any potential anti-competitive detriment which was identified in the ACCC's draft determination is likely to have been significantly mitigated.

In relation to the RAIA's application for a transition period until 31 January 2006 to allow it to phase out its original Code (i.e. the Code authorised under A58) and phase in its proposed new Code, the ACCC considers that as this is unlikely to affect the net public benefits of the overall arrangements, such a transition period would be appropriate.

The Client–Architect Agreement is Itself a Professional Instrument

Institute of Architects

A.1 ARCHITECT'S OBLIGATIONS

Clauses A.1.1 to A.1.8 set out your general obligations to the Client not specifically described elsewhere in the CAA2024.

In *summary*, you are required to:

1. Deliver the Services with reasonable skill, care and diligence at the level that would be expected of an Architect who has experience in projects of similar size, type, complexity and value to the Project;
2. Act as the Client's agent if included in the Services – for example, under the building contract;
3. Maintain accurate records and keep the Client informed of progress;
4. Promptly tell the Client in writing when the scope changes;
5. Tell the Client of all matters that are relevant to the Services that give rise to an ethical or regulatory conflict of interest;
6. If a conflict of interest arises, notify the Client that you need to suspend the Services until the conflict is resolved;
7. Comply with all Codes of Practice. This includes the Institute's Code of Professional Conduct as well as the Code that applies to your Services under the Architects Act; and
8. Maintain your architect's registration and other accreditations necessary in the state or territory of the Site to deliver the Services.

Under Australian Consumer Law, architects and engineers, as professionals, have the benefit of a legal exception to the 'fitness for purpose' guarantee that other services, businesses or providers must give customers or their clients. This is an important exception and reflects the unique professional role and recognition and trust that society puts in these professions. See further commentary in *Acumen* note https://acumen.architecture.com.au/project/agreements/fitness-for-purpose/.

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Commitment to mutual communication

Registration

Professional Indemnity (PI and Public Liability-Insurance.

Access to Profession

Higher learning, discplinary knowledge, regulation, autonomy altruism.

Conflicts of interest

The CAA: A Framework for Communication + Responsibility

the content or form of the work, document or publication.

Division 2—Client relations

4 Client agreements

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(c) the scope, nature and specific requirements of the services;

(d) the timeframes for providing the services;

(e) how the professional fees and costs of the services will be calculated;

(f) where possible, reasonable estimates of disbursements;

(g) how professional fees and costs, including disbursements, will be paid;

(h) how the architect may inform the client of progress in the provision of the services;

(i) how the client may authorise the architect to proceed with the services, or any part of the services;

CLIENT ARCHITECT AGREEMENT

Australian Institute of Architects

AGREEMENT MADE ON_____/_____/_____**BETWEEN:**
(insert date when the last person signs)

THE CLIENT

Name

ABN Client's representative

Address

Telephone Email

Sign only the option below that is relevant to you

By signing below, you agree to be bound by the terms and conditions of this agreement and you consent to either party signing and entering into this agreement using an electronic method or signature:

1. If the Client is an individual, individual trustee, or partnership: Signed Date

2. If the Client is a corporation, executed in accordance with section 127 of the *Corporations Act* 2001: Signed (director/sole director) Signed (director/secretary) Date Date

AND

THE ARCHITECT

The Architect is a person who is registered by the relevant Architects Registration Board.

Name Registration No.

ABN Architect's representative

Address

Telephone Email

By signing below, the Architect also consents to either party signing and entering into this agreement using an electronic method or signature:

1. If the Architect is an individual, individual trustee, or partnership: Signed Date

2. If the Architect is a corporation, executed in accordance with section 127 of the *Corporations Act* 2001: Signed (director/sole director) Signed (director/secretary) Date Date

FOR

the Project: A brief description of the Client's project

located at the Site: The address or location of the site for the Project:

Cost of Works forecast: The initial forecast which is subject to change during the Project is:

For the definition, see section M.

$

(Note: *this amount is* exclusive *of GST. The Client pays the GST in addition to the Cost of Works as revised. See clauses A.3 and D.4.*)

The Client has to be a legal entity.
They don't have to own the land. It is not alway obvious who the client is. I.e. for school and approval and comment.

The Architect:
are you a joint venture or an architect. joint venture, or if they are partnership. or a company.
If you are

When we fill this out, we speak as the architect and we describe the architectural as it is. The extent of work rather than the meaning of the work. We use simple language.

There are multiple forms of the architecture

Who are the Parties?

Making the Professional Relationship Traceable

The Architects Act+ Regulation

9 Documents and record keeping

(1) An architect who has entered into an agreement under clause 4 must keep documents in accordance with this clause.

(2) The following documents in relation to the provision of architectural services must be kept—

(a) an agreement in writing signed by the client;

(b) correspondence;

(c) records of financial transactions;

(d) records of client instructions and meetings related to the services provided to the client;

(e) photographs of work in progress;

(f) project journals, diaries or the like;

(g) drawings and other relevant documents.

(3) Documents must be kept for the longer of—

(a) a period of 10 years after the completion of the architectural services; or

(b) the limitation period under section 134 of the **Building Act 1993**.

The Architects Act+ Regulation

12 Conflicts of interest

(1) An architect must not enter into an agreement with a person under clause 4 for the provision of architectural services if the agreement would result in an actual or potential conflict between the interests of—

(a) the architect and that person; or

(b) a current client and that person.

(2) An architect member or director of an approved partnership or an approved company must take all reasonable steps to ensure that the partnership or company does not enter into an agreement with a person under clause 4 if the agreement would result in an actual or potential conflict between the interests of—

(a) a member of the approved partnership and that person; or

(b) an officer of the approved company and that person; or

(c) a current client of the approved partnership or approved company and that person.

Australian Institute of Architects

Defined terms are in **Bold.** *For definitions, see* ***page 7. Item*** *means an item set out in* ***SCHEDULE B, page 13.***

A. SERVICES *(SEE SCHEDULES A AND B)*

A.1. Architect's Obligations

The Architect must:

1. deliver the **Services** described in this agreement with the reasonable skill, care and diligence expected of an architect who has experience with projects of a similar type, size, complexity and value to the **Project**;
2. act as the Client's agent for the **Project** and, if included in the **Services**, as required under the selected building contract;
3. maintain accurate records and keep the Client informed of progress at all stages by way of meetings, reports and other means;
4. notify the Client promptly when an instruction from the Client or any other requirement changes the scope of **Services** or requires services that are not delivered under this agreement;
5. notify the Client of any matter connected with the **Services** that may give rise to an ethical or regulatory conflict of interest;
6. if a conflict of interest arises, notify the Client and (if required) suspend the services until the conflict is removed or the agreement is terminated under section K, in which case clause K.2.1 applies;
7. comply with the applicable **Code of Practice**; and
8. maintain all necessary registration and accreditations to deliver the **Services** in the state or territory of the **Site**.

A.2. Services or Responsibilities Not Included

Despite anything expressed or implied elsewhere in this agreement, the parties acknowledge and agree that:

1. the Architect is not responsible for ensuring the constructed **Project** complies with the building contract documents, but if the Architect performs contract administration services as part of the **Services**, will instruct the building contractor regarding requirements of the building contract documents according to the contract terms;
2. the Architect gives no express or implied warranty that the **Project**, the **Services,** or **The Design** is fit for the Client's purposes;
3. any natural materials selected for a project may change in appearance or dimension following exposure to use or climatic conditions and this is normal behaviour for such materials;
4. the scope of the **Services** does not include any services relating to or in connection with asbestos, other hazardous materials, or any other site contaminant;
5. on completion of the works, the Client is responsible for ongoing and regular maintenance of the **Project**, including its systems, finishes and equipment;
6. the Client bears the full risk and responsibility for items, materials, fixtures and fittings sourced or supplied and requested by the Client to be incorporated into the **Project**; and
7. the Client releases and indemnifies the Architect from any claim arising from or in connection with each of the acknowledgements and agreements in this clause A.2.

A.3. The Cost of Works

1. The Client agrees that its budget for the **Total Project Cost** appropriately takes into account the initial budget for the forecast **Cost of Works** set out on page 1 of this agreement.
2. The forecast **Cost of Works** may be revised during the **Project** and such revisions must be in accordance with advice of the Architect, any other consultant advice, tenders or offers received and any adjustments during construction.
3. Whenever revised forecasts of the **Cost of Works** are prepared in accordance with clause A.3.2 above, the Client accepts the revised forecast **Cost of Works** and will adjust its **Total Project Cost** budget accordingly.
4. Forecasts of the **Cost of Works** are indicative only and do not guarantee the actual **Cost of Works**. The Architect cannot and does not guarantee the final, actual Cost of Works.

A.4. Program of Services

1. The Client must inform the Architect of the initial program for the **Project** and from this, the Client and the Architect will discuss and co-operate on an initial program for the **Services**.
2. The parties may revise the initial program during the **Project** by mutual agreement.

A.5. Protracted Services

1. If the **Services** are protracted by any cause beyond the Architect's control:
   a. the Architect must promptly notify the Client of the cause and, if possible, the anticipated extent of the delay;
   b. the parties must meet to negotiate in good faith and agree a change to the **Fee** in accordance with clause D.8; and
   c. at that meeting, the parties must also negotiate in good faith a reasonable revised program under clause A.4.2.
2. If the parties do not agree a change to the **Fee** and a revised program, either party may terminate this agreement effective immediately by giving the other party a notice to this effect and if so, clause K.2.1 will apply.

The Architects Act+ Regulation

(d) the timeframes for providing the services;

(e) how the professional fees and costs of the

A.6. Suspended Services

1. If the **Services** are suspended for any reason by the Client or the Architect:
   a. the Architect is entitled to payment of all **Fees** and **Disbursements** due under this agreement up to the date the **Services** are suspended; and
   b. all other rights and entitlements of the Architect continue as though the suspension had not taken place.
2. If the **Services** are suspended by the Client or under clause D.3.3, the Architect is also entitled to be reimbursed all reasonable costs it actually incurs associated with the suspension, including resuming the **Services**.

B. CLIENT OBLIGATIONS

The Client agrees to:

1. appoint the Architect to act as its agent for the **Project** as necessary for the Architect to carry out the **Services**;
2. when a building contractor has been appointed and if contract administration forms part of the **Services**, only issue instructions for the building contractor through the Architect;
3. co-operate with the Architect to determine a reasonable budget for the **Cost of Works**;
4. in a timely way provide all information, **Client Information** and **Site** information, required by the Architect to complete the **Services**;
5. co-operate fully with the Architect to ensure efficient and satisfactory progress through all stages of the **Project**, including giving prompt decisions and approvals for the **Services**;
6. engage directly the **Specialist Consultants** specified in Item 4, after consultation with the Architect, on the conditions in clause E.1;
7. allow the Architect reasonable access to photograph or otherwise record the **Project** before or after completion;
8. allow the Architect to publicise the **Project** including for marketing purposes or awards, unless the parties agree otherwise;
9. attribute the Architect in accordance with clause F.2;
10. [illegible] reasonable requirements or directions in respect of access to the **Site**;
11. notify the Architect of any details of the **Project** that the Client requires the Architect to keep confidential.

C. ADMINISTRATION

The parties acknowledge and agree that:

1. the Client authorises the Architect to proceed with the **Services**;
2. the person named in this agreement as the party's representative is authorised to exercise all rights, powers, authority and functions of the party it represents under this agreement; and
3. either party may, at any time, replace its nominated representative and must notify the other party of any such replacement.

D. FEES *(SEE SCHEDULE B)*

D.1. Fees payable

In exchange for delivering the **Services**, the Client must pay to the Architect:

1. the **Fee**; plus
2. all adjustments to the **Fee** as determined in accordance with the agreement; plus
3. **Disbursements**, if applicable.

D.2. Submitting Claims

The Architect may each month submit to the Client one claim for payment (including GST) in the form of a tax invoice. The claim must clearly state those amounts that relate to the **Fee** and **Disbursements** being claimed.

D.3. Paying Claims

1. The Client must pay the amount in a claim for payment (including GST) within the period stated in Item 7A and if no time is stated, then within 10 business days after receiving it.
2. The Client must pay interest at the rate set out in Item 7B on all payments not made by the date for payment set out in the agreement. Interest is calculated daily on and from the date that payment was due.
3. If any payment under this agreement is overdue, the Architect is entitled at its discretion to suspend the **Services** and if so, clause A.6 will apply.
4. The total lump sum fee or percentage fee stated in Item 1, overrides any error, omission or ambiguity in the amounts allocated to the separate components of the **Services** in Item 1 or claimed at any stage prior to the final claim for payment.

D.4. Percentage Fee

1. If a percentage fee is selected and applies under Item 1 for a component of the **Services**, the total **Fee** the Client must pay for that component is that percentage multiplied by the **Cost of Works**.
2. Subject to clause D.4.3, percentage fees are calculated and adjusted progressively against the forecast **Cost of Works** and are subject to final adjustment against the final **Cost of Works** when known.
3. The Client is not entitled to recover any part of the **Fees** that it has previously paid to the Architect for **Services** that have been performed if the scope of **Services** is reduced or the **Project** has changed, reducing the final **Cost of Works**.

D.5. Lump Sum Fee

If a lump sum fee is selected and applies for a component of the **Services** under Item 1, the total **Fee** the Client must pay for that component is the amount stated in Item 1.

D.6. Time-based Rate Fee

1. If a time-based rate fee is selected and applies under Item 1 for a component of the **Services**, the total **Fee** the Client must pay for that component is the rate in Item 2 multiplied by the time units incurred (based on the time units incurred by the Architect's personnel engaged) to provide that component of the **Services**.
2. If the Client requests, the Architect must, within 7 days of the request, give the Client time sheets or other records to show all actual time units spent on the **Project**.
3. All hourly, daily and monthly rates stated in Item 2 are subject to annual review in line with the Consumer Price Index (All Groups).

D.7. Disbursements

1. The Client must either pay to or reimburse the Architect those **Disbursements** listed in Item 3.
2. **Disbursements** are subject to an additional 15% fee to cover the Architect's administration costs if indicated in Item 3 and this administration fee will be payable at the same time as the payment or reimbursement of the **Disbursement**.

The Architects Act+ Regulation

(1) how the client may authorise the architect to proceed with the services, or any part of the services;

The Architects Act+ Regulation

(e) how the professional fees and costs of the services will be calculated;

The Architects Act+ Regulation

(f) where possible, reasonable estimates of disbursements;

The Client's Obligations + Paying for Services

Changes to Services + Consultants

The Architects Act+ Regulation

(j) a requirement that the architect must inform the client how a change or amendment to the services will affect the professional fees and costs for the services;

Australian Institute of Architects

D.8. Change to the Services

1. If during the course of this agreement, the Architect considers that the **Project** requires a greater or reduced scope of **Services**, the Architect must promptly notify the Client how that change will affect the **Fee**. Then, the parties must negotiate in good faith and agree:
   - a the changed scope of **Services**;
   - b the changes to the **Fee** in Item 1 and any **Disbursements** in Item 3 (as appropriate);
   - c the date which any changes will take effect; and
   - d if any **Services** the subject of the change have already been performed: the reimbursement due to the Architect.
2. If the parties agree to a change under clause D.8.1:
   - a the parties must record their agreement to each of those changes in writing (including by email);
   - b the **Services** and **Fees** under this agreement will be varied as from the date agreed by the parties; and
   - c in the case of any agreed reimbursement for **Services** performed, the Architect will be entitled to include this amount in its next claim for payment.
3. If the parties cannot agree on the changed scope of **Services**, or a changed **Fee**, then either:
   - a the **Services** and the **Fee** will continue to apply
   - b if the Architect is no longer able to perform the **Services** because the parties cannot agree to a change, the Architect may terminate this agreement provided that it has given the Client 10 business days' notice of its intention to terminate and if so the parties then follow clause K.4.

E. SPECIALIST CONSULTANTS *(SEE SCHEDULE B)*

Engageing Specialist consultants

E.1. Specialist Consultant engagement

1. The Architect and the Client agree the **Project** will require the services of the **Specialist Consultants** specified in Item 4 (the **Specialist Consultants**).
2. Item 4 lists those **Specialist Consultants** to be engaged directly and paid by the Client, as well as those to be engaged directly and paid by the Architect as part of the **Fees**.
3. For each **Specialist Consultant** engaged directly by the Client, the Client will engage each **Specialist Consultant** on the basis that:
   - a the Client must pay the **Specialist Consultant** all its fees and disbursements and the Client may seek the Architect's confirmation that the **Specialist Consultant's** services as invoiced have been delivered;
   - b the Architect is authorised and responsible for coordinating the **Specialist Consultant's** services;
   - c the Architect is not responsible for the services delivered by the **Specialist Consultant**; and
   - d the Architect can use, and rely upon, the **Specialist Consultant's** deliverables to the extent required to perform the **Services**.

E.2. Additional Specialist Consultants

If the Architect and the Client agree that additional **Specialist Consultant** services are required beyond those specified in this agreement, such additional consultants may be:

1. engaged directly and paid by the Client; or
2. if the parties agree to a change under clause D.8, engaged directly and paid for by the Architect.

Consultant Engagement

Copyright: Who Owns the Work and Who May Use It?

Copyright Law

Australian Institute of Architects

b the licence may be revoked by the Architect if any invoice that the Architect is entitled to submit under this agreement is overdue. The licence will be automatically reinstated when the Architect receives all overdue amounts; and

c the licence is automatically revoked by any event or action by the Client or a third party that changes or attempts to change the Client's ownership or legal interest in the **Site** in any way, however the Client may at any time request the Architect's consent to reinstate the licence and the Architect must not unreasonably withhold its consent.

3. The Client warrants that it will not:

a use **The Design** on another site;

b attempt to assign the licence to use **The Design**; or

c provide or disclose **The Design** to a third party;

unless the Architect has given the Client prior written consent to do so.

4. The Client must not do or fail to do anything which infringes any copyright or breaches another person's moral rights or any obligation of confidentiality, in relation to **Client Information**. If the Client or the **Services** require the Architect in any way to incorporate, adapt, vary or make any derivative of any **Client Information**, then the Client warrants that directing or permitting the Architect to use any **Client Information** in such a way, does not and will not:

a infringe another person's copyright; nor

b offend another author's moral rights; nor

c breach any actual or implied obligation of confidentiality.

5. On completion of all **Services** under this agreement and on full payment of all invoices that the Architect is entitled to submit under it, the licence in clause F.1.2 becomes irrevocable.

F.2. Moral Rights

1. The Client must attribute the Architect as the author of **The Design** in all digital, printed or audio information containing a 2- or 3-dimensional representation of the **Project** or **The Design**, or a part of it, whether the **Project** is complete or not.
2. The form of attribution that must be used is set out in Item 5.

F.3. Indemnity for specific breaches of section F

1. If the Client:

a uses **The Design**, or permits it to be used, in a way that is inconsistent with or in breach of clause F.1, or

b knows it can't give, or didn't take reasonable steps to ensure it could legally give, the warranty promises in clause F.1.4,

the Client indemnifies the Architect from all liability, loss and reasonable costs (including legal costs) the Architect actually and directly incurs due to any breach of clauses F.11, F.12, F.13 or F.14.

F.4. Electronic Data Transfer

The Client agrees that:

1. the Architect may issue data electronically to all parties involved in the **Project**;
2. the Architect is not responsible for the accuracy, completeness or any loss or contamination of electronically transmitted data, nor any degraded information due to translating the original file to a different digital format; and
3. the cost of preparing or converting digital data is to be reimbursed by the Client, as set out in Item 3.

F.5. Building Information Modelling (BIM)

If the parties agree to use **BIM** in the delivery of the **Services** and specify the relevant protocol applicable to **BIM** under this agreement in SCHEDULE A, t... must comply with the expressly stated protocol (if any).

G. INSURANCES AND LIABILITY *(SEE SCHEDULE B)*

G.1. Insurances

For at least the duration of this agreement, the Architect must maintain:

1. professional indemnity insurance, for not less than the value stated in Item 6;
2. public liability insurance, for not less than the value stated in Item 6; and
3. insurance to cover liability for its employees in accordance with statutory requirements.

G.2. Liability

To the maximum extent permitted by law:

1. subject to subclauses 2 and 3 below, the Architect's maximum aggregate liability to t... agreement (including the performance or non-performance of the **Services**), whether under the law of contract, in tort, in equity, under statute or otherwise, is limited to the net amount actually rec... Architect's professional indemnity insurance policy;
2. the Architect has no liability to the Client in respect of any indirect, consequential or special losses (including loss of profit, loss of contract, loss of business opportunity and payment of liquidated sums or damages under any other agreement or settlement); and
3. if any of this clause G.2 is void as a result of section 64 of the Australian Consumer Law (or equivalent state or territory legislation) then the Architect's liability for a breach of a condition or warranty is limited to (at the Architect's choice):

a supplying the relevant **Services** again; or

b paying or reimbursing the cost of having the **Services** supplied again by the Architect.

Insurance

The Architects Act+ Regulation

The Architects Act+ Regulation

(b) the name, registration number and contact details of the architect responsible for providing the services;

Tort Law

Professional Negligence- Protected by insurance

Corporate/business Law

Professional Negligence- Protected by insurance

Insurance, Liability + Termination

Australian Institute of Architects

H. GENERAL CONDITIONS

1. Any consent, approval, request, notification or notice given or required under this agreement must be given in writing (which includes email).
2. Variations to this agreement that are agreed between the parties will not be effective unless and until put in writing and accepted by both parties (which includes email).
3. Except by operation of law, neither party can assign, novate or transfer this agreement without obtaining the prior consent of the other party.
4. The applicable law of this agreement is the law of the state or territory in which the **Site** is located, unless it is outside Australia, in which case it is the law of the state or territory of the Architect's address stated in this agreement.
5. Nothing in this agreement makes ineffective, or reduces, the protection at law from liability which either party is entitled to in the state or territory of the applicable law.
6. This agreement supersedes all prior agreements, representations or understandings between the Client and the Architect in relation to the **Project** and constitutes the entire agreement.
7. This agreement applies to all services delivered by the Architect before the formal execution of this agreement.
8. A notice or other document that is sent in connection with this agreement by mail will be deemed to have been received 5 business days (10 business days in the case of overseas mail) after it is posted.
9. If a notice is sent by email after 5.00 pm, the email will be deemed to have been delivered at the beginning of the next business day.
10. Unless otherwise stated, all figures are in Australian dollars and are exclusive of GST.

J. DISPUTE RESOLUTION

1. Without limiting the Architect's rights under clause D.3.3, if a dispute arises out of or in relation to this agreement, the Client and the Architect must continue to perform their obligations under the agreement.
2. When a dispute arises:
   - a either party may deliver a notice to the other party outlining the details of the dispute and requiring a meeting within 5 business days of the date of the notice to make a bona fide attempt to resolve the dispute or difference;
   - b if the dispute is not resolved by that meeting or if the parties fail to meet, either party may submit the dispute to mediation by delivering to the other a proposal of mediation;
   - c a proposal of mediation must state the name of a mediator accredited by the Resolution Institute in the state or territory of the law that applies, who is independent and willing to act;
   - d if the parties do not agree on the mediator within 5 business days after the proposal is delivered, the Chair of the Resolution Institute in the place of the law that applies, must be requested to nominate the mediator;
   - e the mediation must then proceed in accordance with the rules of the Resolution Institute for mediation except that in no case will one party be required to pay more than half of the costs of mediation; and
   - f if the parties are unable to resolve the dispute by mediation, confirmed by the mediator in writing, either party may only then take legal action to resolve the dispute.

K. TERMINATION

K.1. Termination for the Client's breach

1. Without affecting other rights or entitlements, the Architect may terminate this agreement immediately by notice if, in the opinion of the Architect, the Client breaches or does not strictly comply with a material provision of this agreement. Material provisions of the agreement include (but are not limited to) clauses B and D.3. The Architect's notice must identify the material provision that the Client has breached. The parties then follow clause K.4.

K.2. Termination, without reason

1. Either party may at any time, without reason, terminate this agreement by giving the other party no less than 30 business days' notice of the intention to terminate the agreement. The parties then follow clause K.4.

K.3. Termination for the Architect's breach

The Client may immediately terminate the Agreement by notice to the Architect, if the Architect:

1. is insolvent or bankrupt (as relevant); or
2. commits a material breach of its obligations under clause A.1 or G.1 of this agreement and has failed to remedy the breach within 10 business days after receiving a written notice from the Client that specifies the breach and includes a reference to this clause K.3.2.

K.4. Consequences, obligations and limitations of terminating

1. If either party properly terminates this agreement under this section K or clause D.8:
   - a without prejudice to any claim the Architect may have against the Client, the Client must promptly pay:
     - the amount due to the Architect for all **Services** completed prior to the date of the termination notice; and
     - the amount for all **Services** carried out and costs or expenses reasonably incurred by the Architect in connection with ending the **Services**, up to and including the termination

The Architects Act+ Regulation

(n) how the agreement may be terminated and for what reason.

The Architects Act+ Regulation

(m) a reservation of the right of an architect to withdraw from the provision of services under the agreement in the circumstances set out in clause 14;

Definitions + Codes of Conduct

AIA Code of Practice- Code of Conduct

b the Architect must, on receiving payment, issue to the Client a copy in PDF format of the relevant documents to be delivered under the **Services** up to the date of termination.

2. Except in the case the Client terminates this agreement under clause K.3.2 for an unremedied breach, the Client will have no claim in relation to the adequacy or completeness of the **Services** nor any documents delivered by the Architect under clause K.4.1.b.

K.5. Surviving obligations

The rights, obligations and effect of clauses B.7, B.8, B.9, F.1, F.2, F.3, G.2, H.4, K.4 and this clause K.5 survive and continue to be in effect even if this agreement ends or is terminated under section K or a special condition.

L. SPECIAL CONDITIONS

The parties agree to the special conditions stated in SCHEDULE C. These special conditions apply to and take precedence over all other terms of this agreement.

M. DEFINITIONS

Defined terms are shown capitalised and have the meaning and details given in the schedule on page 1 of this agreement and unless the context otherwise requires:

BIM means Building Information Modelling software and forms of digital data, or equivalent digital technologies and processes from time to time.

Client Information means all data, design, drawing, document or other information or materials given to the Architect for the purposes of the **Services**, whether provided by the Client or created on behalf of the Client.

Code of Practice means the Australian Institute of Architects' Code of Professional Conduct (if it applies to the Architect) and where the **Services** are performed in:

1. Australian Capital Territory, a code of conduct issued under the *Architects Act 2004* (ACT),
2. New South Wales, the code of conduct issued under the *Architects Act 2003* (NSW) or the *Architects Regulation 2017* (NSW);
3. Northern Territory, a code of conduct issued under the *Architects Act 1963* (NT) or the *Architects Regulations 1965* (NT);
4. Queensland, the code of conduct issued under the *Architects Act 2002* (QLD) or the *Architects Regulation 2019* (QLD);
5. South Australia, the code of conduct issued under the *Architectural Practice Act 2009* (SA) or the *Architectural Practice (General) Regulations 2010* (SA);
6. Tasmania, the code of conduct issued under the *Architects Act 1929* (TAS) or the *Architects Regulations 2023* (TAS);
7. Victoria, the code of conduct issued under the *Architects Act 1991* (Vic) or the *Architects Regulations 2015* (Vic); and
8. Western Australia, a code of conduct issued under the *Architects Act 2004* (WA) or the *Architects Regulation 2005* (WA);

as amended or replaced from time to time.

Cost of Works is the final cost of all work designed, specified or scheduled by the Architect, including all work designed, specified or scheduled by **Specialist Consultants** coordinated by the Architect, including:

1. the final adjusted contract price (excluding GST) in accordance with a building contract for the **Project**, plus
2. the equivalent final cost (excluding GST) of work or items supplied by the Client to the building contractor (as if provided by the building contractor under the building contract), plus
3. the final cost (excluding GST) of any part of the **Project** provided under a contract other than the building contract;

but excludes GST and the fees, costs and charges of:

4. an authority, agency or tribunal;
5. any other consultant; and
6. in connection with finance, removal or relocation.

The Design includes all design concepts, drawings and documents created in connection with, or delivered under the **Services**.

Disbursement means the disbursements payable in accordance with clause D.7, as set out in Item 3.

Fee means the fee for **Services** set out in Item 1 and calculated in accordance with clause D and includes the **Mobilisation Fee**, if applicable.

Mobilisation Fee means the lump sum amount set out in Item 1 (if any) to be paid by the Client to the Architect within 5 business days after the date of this agreement and is a non-refundable advance payment for **Services** delivered under this agreement.

Project means the project briefly described on page 1 of this agreement.

Services means the services described in SCHEDULE A.

Site means the location identified on page 1 of this agreement.

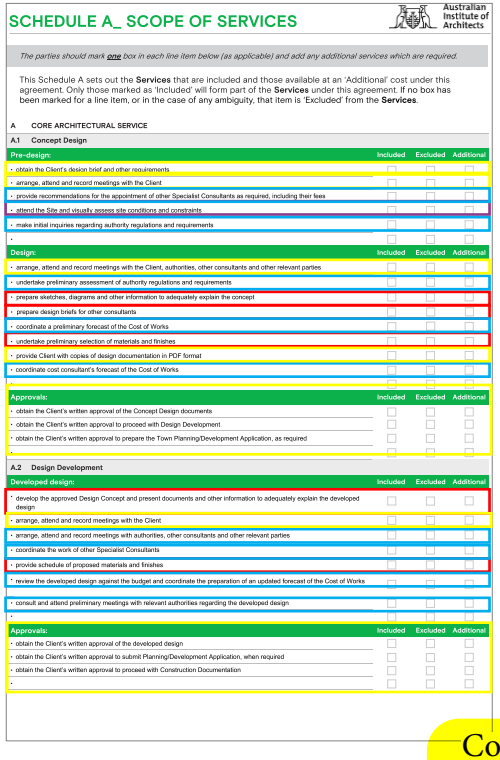
Specialist Consultant has the meaning given in clause E.1.

Total Project Cost is the **Cost of Works** plus all other costs to the Client associated with the **Project**, including but not necessarily limited to:

1. removal and relocation costs
2. design and construction contingencies, including escalation costs
3. architectural, consultant and other professional fees
4. authority fees and charges
5. legal fees
6. landscaping
7. loose or unaffixed furniture, fittings and equipment
8. finance charges, marketing and promotional costs.

The Architects Act+ Regulation

(c) the scope, nature and specific requirements of the services;


SCHEDULE A_ SCOPE OF SERVICES

Australian Institute of Architects

*The parties should mark **one** box in each line item below (as applicable) and add any additional services which are required.*

This Schedule A sets out the **Services** that are included and those available at an 'Additional' cost under this agreement. Only those marked as 'Included' will form part of the **Services** under this agreement. If no box has been marked for a line item, or in the case of any ambiguity, that item is 'Excluded' from the **Services**.

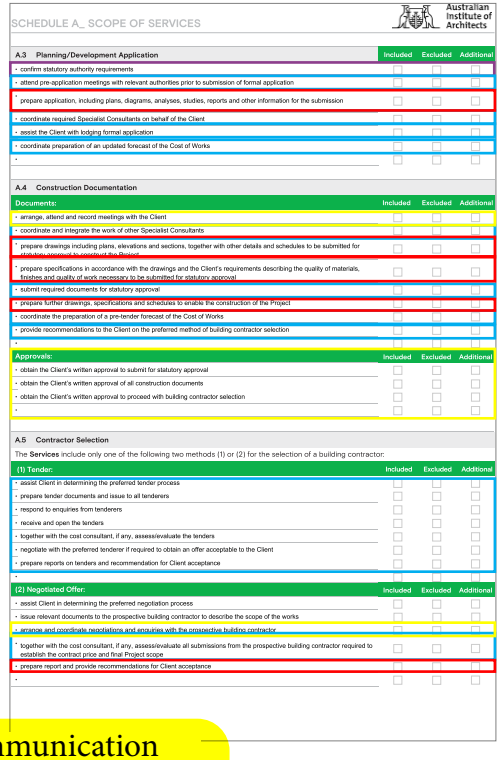
A CORE ARCHITECTURAL SERVICE

A.1 Concept Design

Pre-design:	Included	Excluded	Additional
• obtain the Client's design brief and other requirements			
• arrange, attend and record meetings with the Client			
• provide recommendations for the appointment of other Specialist Consultants as required, including their fees			
• attend the Site and visually assess site conditions and constraints			
• make initial inquiries regarding authority regulations and requirements			
•			
Design:	**Included**	**Excluded**	**Additional**
• arrange, attend and record meetings with the Client, authorities, other consultants and other relevant parties			
• undertake preliminary assessment of authority regulations and requirements			
• prepare sketches, diagrams and other information to adequately explain the concept			
• prepare design briefs for other consultants			
• coordinate a preliminary forecast of the Cost of Works			
• undertake preliminary selection of materials and finishes			
• provide Client with copies of design documentation in PDF format			
• coordinate cost consultant's forecast of the Cost of Works			
•			
Approvals:	**Included**	**Excluded**	**Additional**
• obtain the Client's written approval of the Concept Design documents			
• obtain the Client's written approval to proceed with Design Development			
• obtain the Client's written approval to prepare the Town Planning/Development Application, as required			
•			

A.2 Design Development

Developed design:	Included	Excluded	Additional
• develop the approved Design Concept and present documents and other information to adequately explain the developed design			
• arrange, attend and record meetings with the Client			
• arrange, attend and record meetings with authorities, other consultants and other relevant parties			
• coordinate the work of other Specialist Consultants			
• provide schedule of proposed materials and finishes			
• review the developed design against the budget and coordinate the preparation of an updated forecast of the Cost of Works			
•			
• consult and attend preliminary meetings with relevant authorities regarding the developed design			
•			
Approvals:	**Included**	**Excluded**	**Additional**
• obtain the Client's written approval of the developed design			
• obtain the Client's written approval to submit Planning/Development Application, when required			
• obtain the Client's written approval to proceed with Construction Documentation			
•			


SCHEDULE A_ SCOPE OF SERVICES

Australian Institute of Architects

A.3 Planning/Development Application

	Included	Excluded	Additional
• confirm statutory authority requirements			
• attend pre-application meetings with relevant authorities prior to submission of formal application			
• prepare application, including plans, diagrams, analyses, studies, reports and other information for the submission			
• coordinate required Specialist Consultants on behalf of the Client			
• assist the Client with lodging formal application			
• coordinate preparation of an updated forecast of the Cost of Works			
•			

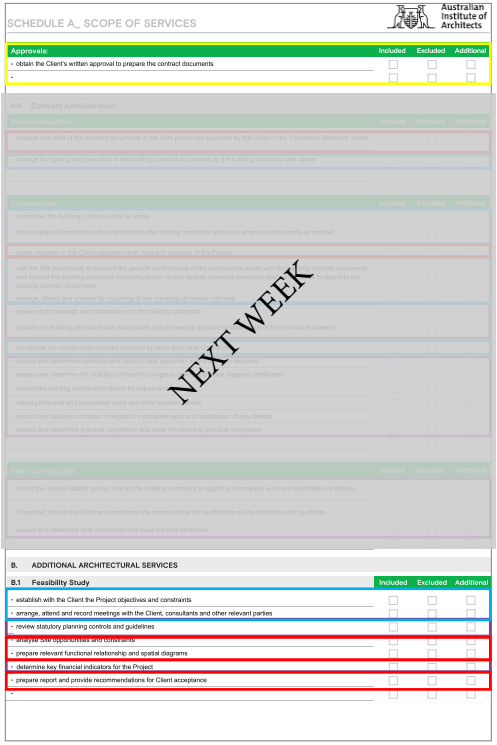
A.4 Construction Documentation

Documents:	Included	Excluded	Additional
• arrange, attend and record meetings with the Client			
• coordinate and integrate the work of other Specialist Consultants			
• prepare drawings including plans, elevations and sections, together with other details and schedules to be submitted for statutory approval in accordance with the Brief			
• prepare specifications in accordance with the drawings and the Client's requirements describing the quality of materials, finishes and quality of work necessary to be submitted for statutory approval			
• submit required documents for statutory approval			
• prepare further drawings, specifications and schedules to enable the construction of the Project			
• coordinate the preparation of a pre-tender forecast of the Cost of Works			
• provide recommendations to the Client on the preferred method of building contractor selection			
•			
Approvals:	**Included**	**Excluded**	**Additional**
• obtain the Client's written approval to submit for statutory approval			
• obtain the Client's written approval of all construction documents			
• obtain the Client's written approval to proceed with building contractor selection			
•			

A.5 Contractor Selection

The **Services** include only one of the following two methods (1) or (2) for the selection of a building contractor:

(1) Tender:	Included	Excluded	Additional
• assist Client in determining the preferred tender process			
• prepare tender documents and issue to all tenderers			
• respond to enquiries from tenderers			
• receive and open the tenders			
• together with the cost consultant, if any, assess/evaluate the tenders			
• negotiate with the preferred tenderer if required to obtain an offer acceptable to the Client			
• prepare reports on tenders and recommendation for Client acceptance			
•			
(2) Negotiated Offer:	**Included**	**Excluded**	**Additional**
• assist Client in determining the preferred negotiation process			
• issue relevant documents to the prospective building contractor to describe the scope of the works			
• arrange and coordinate negotiations and enquiries with the prospective building contractor			
• together with the cost consultant, if any, assess/evaluate all submissions from the prospective building contractor required to establish the contract price and final Project scope			
• prepare report and provide recommendations for Client acceptance			
•			


SCHEDULE A_ SCOPE OF SERVICES

Australian Institute of Architects

Approvals:	Included	Excluded	Additional
• obtain the Client's written approval to prepare the contract documents			
•			

A.8 Contract Administration

Pre-construction

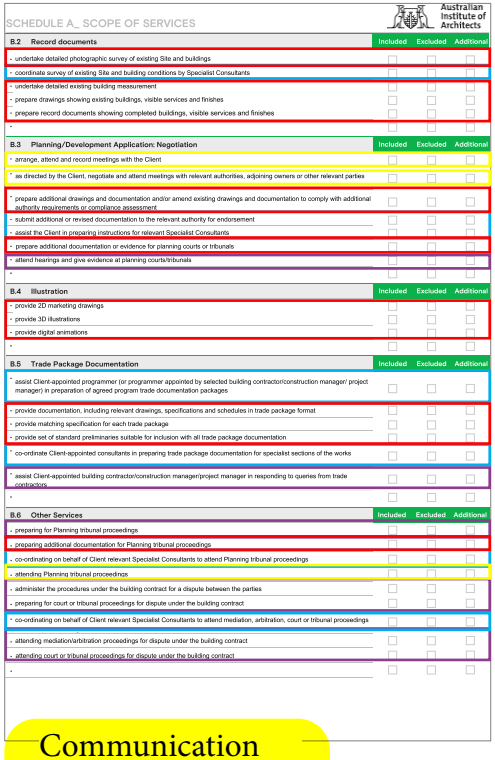
Construction

Post-construction

B. ADDITIONAL ARCHITECTURAL SERVICES

B.1 Feasibility Study

	Included	Excluded	Additional
• establish with the Client the Project objectives and constraints			
• arrange, attend and record meetings with the Client, consultants and other relevant parties			
• review statutory planning controls and guidelines			
• analyse Site opportunities and constraints			
• prepare relevant functional relationship and spatial diagrams			
• determine key financial indicators for the Project			
• prepare report and provide recommendations for Client acceptance			
•			


SCHEDULE A_ SCOPE OF SERVICES

Australian Institute of Architects

B.2 Record documents

	Included	Excluded	Additional
• undertake detailed photographic survey of existing Site and buildings			
• coordinate survey of existing Site and building conditions by Specialist Consultants			
• undertake detailed existing building measurement			
• prepare drawings showing existing buildings, visible services and finishes			
• prepare record documents showing completed buildings, visible services and finishes			
•			

B.3 Planning/Development Application: Negotiation

	Included	Excluded	Additional
• arrange, attend and record meetings with the Client			
• as directed by the Client, negotiate and attend meetings with relevant authorities, adjoining owners or other relevant parties			
•			
• prepare additional drawings and documentation and/or amend existing drawings and documentation to comply with additional authority requirements or compliance assessment			
• submit additional or revised documentation to the relevant authority for endorsement			
• assist the Client in preparing instructions for relevant Specialist Consultants			
• prepare additional documentation or evidence for planning courts or tribunals			
• attend hearings and give evidence at planning courts/tribunals			
•			

B.4 Illustration

	Included	Excluded	Additional
• provide 2D marketing drawings			
• provide 3D illustrations			
• provide digital animations			
•			

B.5 Trade Package Documentation

	Included	Excluded	Additional
• assist Client-appointed programmer (or programmer appointed by selected building contractor/construction manager/ project manager) in preparation of agreed program trade documentation packages			
• provide documentation, including relevant drawings, specifications and schedules in trade package format			
• provide matching specification for each trade package			
• provide set of standard preliminaries suitable for inclusion with all trade package documentation			
• co-ordinate Client-appointed consultants in preparing trade package documentation for specialist sections of the works			
• assist Client-appointed building contractor/construction manager/project manager in responding to queries from trade contractors			
•			

B.6 Other Services

	Included	Excluded	Additional
• preparing for Planning tribunal proceedings			
• preparing additional documentation for Planning tribunal proceedings			
• co-ordinating on behalf of Client relevant Specialist Consultants to attend Planning tribunal proceedings			
• attending Planning tribunal proceedings			
• administer the procedures under the building contract for a dispute between the parties			
• preparing for court or tribunal proceedings for dispute under the building contract			
• co-ordinating on behalf of Client relevant Specialist Consultants to attend mediation, arbitration, court or tribunal proceedings			
•			
• attending mediation/arbitration proceedings for dispute under the building contract			
• attending court or tribunal proceedings for dispute under the building contract			
•			

NEXT WEEK

Communication Approvals

A CORE ARCHITECTURAL SERVICE

Co-ordination with consultants

A.1 Concept Design

A.2 Design Development

A.3 Planning/Development Application

A.4 Construction Documentation

Judgement and assessment

43 items

Producing drawings

B. ADDITIONAL ARCHITECTURAL SERVICES

B.1 Feasibility Study

B.2 Record documents

B.3 Planning/Development Application: Negotiation

B.4 Illustration

B.5 Trade Package Documentation

B.6 Other Services

37 items

Communication Approvals

Co-ordination with consultants

Judgement and assessment

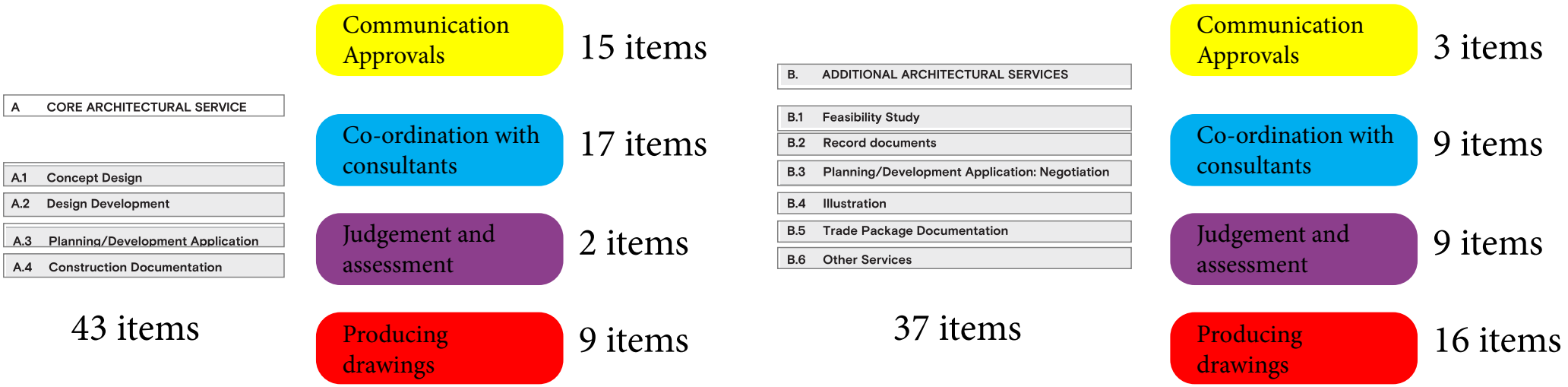
Producing drawings

CAA-Scope of services+ Stages

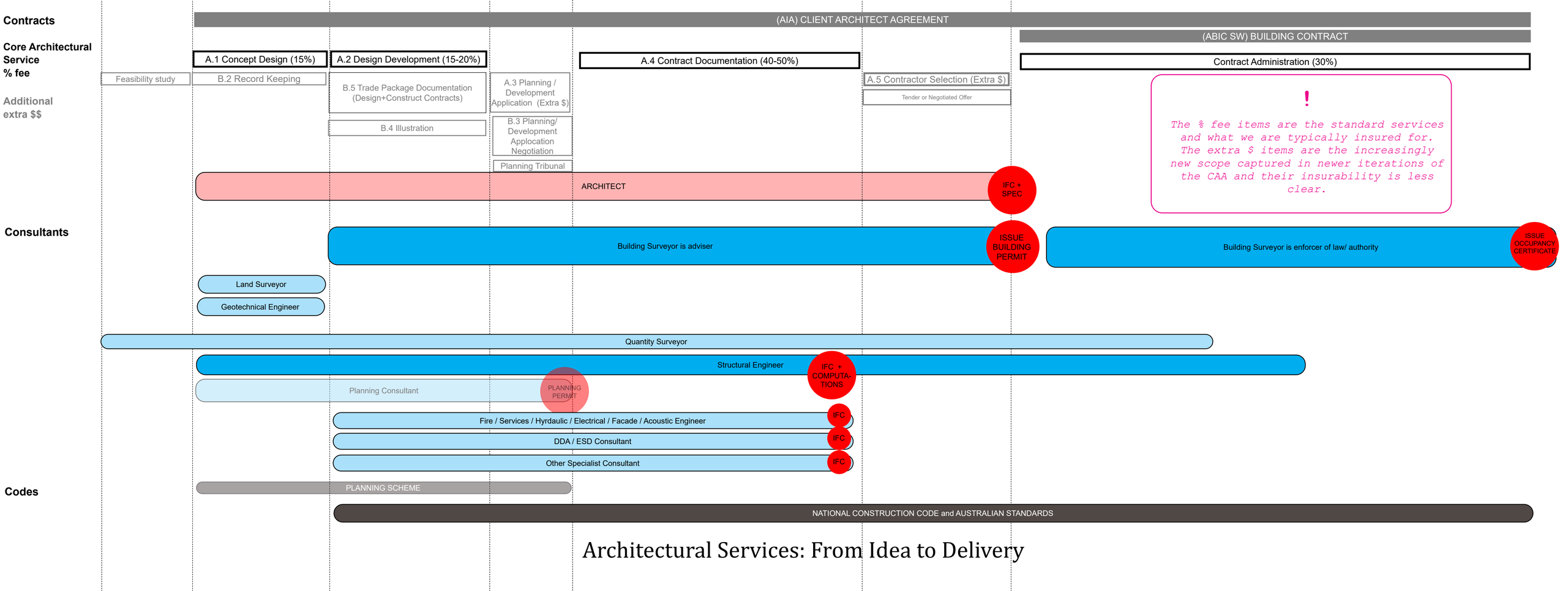
? *As architects no longer administer full contract, what value are we still providing?*

! *If architects better articulated this value, they could justify charging for it.*

Value of architect is in access to disciplinary knowledge, ability to make judgments about information from consultants not just the design of drawing



Architectural Services: Drawings are Only One Part of the Work



Architectural Services: From Idea to Delivery

Contracts

Core Architectural Service
% fee
Additional extra $$

(AIA) CLIENT ARCHITECT AGREEMENT

(ABIC SW) BUILDING CONTRACT

Feasibility	A.1 Concept Design (15%)	A.2 Design Development (15-20%)	A.3 Planning / Development Application (Extra $)	A.4 Contract Documentation (40-50%)	A.5 Contractor Selection (Extra $)	Value Management	Contract Administration (30%)
Drawing. Report	**Drawing Report**	**Drawing Report**		**Tender Contract Set** · Specification · Schedules · Drawing		Drawing	**Building is built**
						Amendments, RFI's, Conditions	**Variations**
Diagramming · briefing · research · precedent analysis · design workshops · options testing · 3D modelling · physical models · visualisation · coordination · cost testing		Diagramming · briefing · research · precedent analysis · design workshops · options testing · 3D modelling · physical models · visualisation · coordination · cost testing		Diagramming · design workshops · options testing · 3D modelling · physical models · visualisation · coordination · cost testing · programming		Design workshop, cost testing	Diagramming · design workshops · options testing · 3D modelling · visualisation · coordination · cost testing · programming

Indigenous Engagment

listening → relationship building → workshops → mapping knowledge → identifying priorities → testing options → feedback → decisions → changed brief/design → outcomes

The design is solving a problem, sometimes changes site, scope. Sometimes there is no need for the building.

The design is is in mind of the Architect and Client and the design emerges between them

The design can be understood in the context of wider planning aspirations

Description of Architecture Changes

The builder can now understand the architecture

The architecture becomes a complete building

The project reduces in risk as the cost becomes more accurate

+_50%

Initially the Quantity Surveyor represents the predicted market

+_10%

The tendering proceses gives an indication of specific market price (Builders provide quote)

The actual price emerges live on site ather conditions, material market and labour costs

+_0 %

Final real cost has been paid

Stages often align to points where the project description is given a cost value

Cost Plan A Price	Cost Plan B Price	Cost Plan C Price	Cost Plan D Price	Tender Price	Progress Claims	Progress Claims	Progress Claims	Final Claim

Architectural Services: Where is the Value?

The Architects Act+ Regulation

(e) how the professional fees and costs of the services will be calculated;

SCHEDULE B_ SCHEDULED ITEMS

Australian Institute of Architects

ITEM 1.

PERCENTAGE FEES (EXCL. GST)	Service (see Schedule A)	Amount of percentage fee allocated to each service component:	
See clause D.1 and D.4	A.1 Concept design	%	
	A.2 Design development	%	
	A.3 Planning/Development Application	%	
	A.4 Construction documentation	%	
	A.5 Contractor selection	%	
	A.6 Contract administration	%	
	B.1 Feasibility study	%	
	B.2 Record documents	%	
	B.3 Planning/Development Application: Negotiation	%	
	B.4 Illustration	%	
	B.5 Trade package documentation	%	
	B.6 Other services	%	
	Total Percentage Fee (excl. GST):	**%**	

The Architects Act+ Regulation

(e) how the professional fees and costs of the services will be calculated;

LUMP SUM FEES (EXCL. GST)	Service (see Schedule A)	Amount of lump sum fee allocated to each service component (excl. GST):		Tick box if time based rates apply (see Item 2)
See clauses D.1, D.5 and D.6	A.0 Mobilisation Fee*	$		
	A.1 Concept design	$	OR	☐
	A.2 Design development	$	OR	☐
	A.3 Planning/Development Application	$	OR	☐
	A.4 Construction documentation	$	OR	☐
	A.5 Contractor selection	$	OR	☐
	A.6 Contract administration	$	OR	☐
	B.1 Feasibility study	$	OR	☐
	B.2 Record documents	$	OR	☐
	B.3 Planning/Development Application: Negotiation	$	OR	☐
	B.4 Illustration	$	OR	☐
	B.5 Trade package documentation	$	OR	☐
	B.6 Other services	$	OR	☐
	Total **Lump Sum Fee** (excl. **GST**):	**$**		
	GST as calculated on the above amount:	**$**		
	Total **Lump Sum Fee** (incl. GST):	**$**		

* *Note: an applicable **Code of Practice** may prohibit or impose a cap on the amount of any Mobilisation Fee payable. Please refer to the **Code of Practice** that is applicable in the state or territory of the Project's **Site.***

How are Architectural Services Charged?

The Architects Act+ Regulation

(e) how the professional fees and costs of the services will be calculated;

The Architects Act+ Regulation

(f) where possible, reasonable estimates of disbursements;

SCHEDULE B_ SCHEDULED ITEMS

Australian Institute of Architects

ITEM 2.

TIME-BASED RATES	Personnel	Time rate excluding GST	Time rate Including GST	Time unit (either hour, day or month)
See clause D.6	Principal/Director	$	$	Select...
	Team Leader	$	$	Select...
	Senior Architect	$	$	Select...
	Architect	$	$	Select...
	Graduate of Architecture	$	$	Select...
	Technician	$	$	Select...
		$	$	Select...
		$	$	Select...
		$	$	Select...
		$	$	Select...
		$	$	Select...
		$	$	Select...

ITEM 3.

DISBURSEMENTS	Item	Tick box if: Client to Pay	Reimbursement to Architect	Admin Fee (D.7.2)	Rate or basis to be charged (excluding GST unless stated otherwise)
See clause D.7	Fees, taxes, levies or charges paid to authorities	☐	☐	☐	
	Advertisements and notices	☐	☐	☐	
	Special presentation material, models, perspectives	☐	☐	☐	
	Rental of special equipment	☐	☐	☐	
	Digital data file transfers and digital file conversions	☐	☐	☐	
	Photographic records	☐	☐	☐	
	Courier and parcel postage services	☐	☐	☐	
	Copies of documents other than to Client for Client's own use	☐	☐	☐	
	Colour reproductions of documents	☐	☐	☐	
	Building contracts	☐	☐	☐	
	Travel time	☐	☐	☐	
	Vehicle use beyond 30km from office	☐	☐	☐	
	Interstate, intrastate, or overseas travel	☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	

These items are not part of the description, they don't change through the contracts. Which is why they are seperate.

How are Architectural Services Charged?

Specialist Consultants, Attribution, Liability + Payment

The Architects Act+ Regulation

(g) how professional fees and costs, including disbursements, will be paid;

ITEM 4.

SPECIALIST CONSULTANT	Consultant	Client to engage	Architect to engage	Notes
See clause E.1	Cost consultant	☐	☐	
	Land surveyor	☐	☐	
	Quantity surveyor	☐	☐	
	Structural (civil) engineer	☐	☐	
	Mechanical engineer	☐	☐	
	Electrical engineer	☐	☐	
	Hydraulic engineer	☐	☐	
	Fire services engineer	☐	☐	
	Vertical transport engineer	☐	☐	
	Certification (building surveyor)	☐	☐	
	Planning consultant	☐	☐	
	Geotechnical engineer	☐	☐	
	Landscape architect	☐	☐	
	Interior design consultant	☐	☐	
	ESD Consultant	☐	☐	
	Heritage Consultant	☐	☐	
	Façade Engineer	☐	☐	
		☐	☐	
		☐	☐	

ITEM 5.

FORM OF ATTRIBUTION	Insert the preferred form of attribution of the Architect's Moral Rights:
See clause F.2	

ITEM 6.

INSURANCES AND LIABILITY	Details		
See clause G.1	Professional Indemnity Insurance	Not less than: $	
See clause G.1	Public Liability Insurance	Not less than: $	

ITEM 7A.

TIME FOR MAKING PAYMENT

See clause D.3.1 _____ business days

If nothing stated, the default is 10 business days.

ITEM 7B.

INTEREST ON MAKING LATE PAYMENT

See clause D.3.2 _____ % per annum

If nothing stated, the applicable interest rate is 15% per annum.

SCHEDULE C_ SPECIAL CONDITIONS

Australian Institute of Architects

SPECIAL CONDITIONS	Clause No.	Details
See Section L		

Italic, red text is a prompt for you to insert, delete, modify, or accept text as required according to the circumstances of your project.

Guiding comments are highlighted in yellow.

When you are finished editing, delete this Text Box delete/replace all the red text and delete the guiding comments

You can use this letter text in the body of the email or attach as a PDF.

GL1. INTRODUCTORY LETTER FOR CAA2024 (DELETE BEFORE SENDING)

[Insert Date]

Insert Client Name
Insert Client Address]

CONFIDENTIAL

Dear *[Insert Client Name]*,

Re: Fee proposal to provide Architectural Services
Project: *[Insert project name]*

It was a pleasure to discuss/meet with you about your project [modify for your preferred salutations].

Further to our recent *discussion/meeting on [insert date of]*, we include here:
- a summary of our assessment of the design brief *and site assessment*;
- an initial forecast of the *Cost of Works* for the project, and
- the *method for calculating our* fee for our services as your architect,

all for your consideration.

A draft Client Architect Agreement is attached and provides detailed information on the services to be provided and contractual conditions of our engagement as your Architect. This agreement is the Australian Institute of Architects' standard-form *Client Architect Agreement (the **CAA**)*. *We also attach the 'Information guide to the client' that helps you understand the CAA, as well as a copy of the applicable Code of Conduct required under the Architects Act that applies to all architects.*

Design Brief and Site Assessment

We have summarised our understanding of your preliminary design brief in accordance with our recent discussions to allow us to evaluate the approximate size and complexity of the project.

[For a relatively simple project you might choose to insert here a description of the project identifying the key components to be designed and/or coordinated by the architect, and to summarise the estimated built areas associated with the project.]

[For example:]

Two storey residence including:

Open plan living and kitchen area with walk-in pantry
Laundry
Powder room
Study
Master bedroom with WIR and ensuite
Two children's bedrooms with shared bathroom

Rumpus room
Double lock-up garage attached to house
Swimming pool and outdoor BBQ area

Estimated area 400m2 including garage

For a more complex project you may wish to refer to a design brief which you also attach.

Note: The approximated areas outlined above are initial, indicative estimates only and are likely to change as the design brief and project design evolve.

The 'Cost of Works' forecast

You will recall our discussion of the **Cost of Works** and that our fees, among other things, are not part of calculating the **Cost of Works**. It is very important that we proceed with a mutual understanding of what the **Cost of Works** covers and how it is used during the stages of our services. *We encourage you to read the enclosed 'Information guide to the client' document which also explains these concepts under the CAA.*

Clause A.3 and Section M of the CAA (pages 2 and 7) sets out the definition of the **Cost of Works**. If you are unclear on what parts of your **Total Project Cost** are included in the **Cost of Works** and which parts are not, please *ask us or* refer to the 'Information guide to the client' document.

On our current understanding of your design brief, and the quality and size of the project, our initial **Cost of Works** forecast is *$XXXXXX* (excl. GST).

In deriving this initial **Cost of Works** forecast we have considered market trends for projects of a similar nature, but indicative costs are not a guarantee of actual costs nor the final cost for your project.

This preliminary indication of cost is provided to assist you in understanding your design brief and your **Cost of Works** budget as it relates to your **Total Project Cost**, discussed below. It is also based on assumptions we have made about the design brief and information available at this point in time.

As discussed, we highly recommend you engage a quantity surveyor or professional cost consultant to assist you in managing your overall budget for the project. A cost consultant can provide professional and more accurate estimates of the project costs, as the project takes shape.

Your budget and the Total Project Cost

The **Total Project Cost** (also defined in Section M) includes the **Cost of Works** plus all other costs that relate to the project including (but not limited to) our fees *and those of other specialist consultants and professionals*; disbursements; *removal and relocation costs; design and construction contingencies including escalation costs; planning and other authority fees and charges; legal fees; landscaping; loose or unaffixed furniture, fittings and equipment; borrowing or finance costs; marketing and promotional costs, etc.*

As discussed, you are responsible for managing the **Total Project Cost** budget, because this concept covers components we are unable to control, manage, or don't have responsibility for. Please also consider the GST components for costs, because the GST payable on the project costs (including our fees) should be factored in your budget.

We also recommend that you include in the **Total Project Cost** budget a contingency sum of say *XXXX*%, to allow for unforeseen expenses that may eventuate as the project proceeds.

A few examples of expenses which might arise that you do not presently expect could be:
- you might later decide to have us carry out extra services you have not presently anticipated;
- the services of another specialist consultant may become desirable or necessary;
- during the construction of the project, you may decide you want to change something which involves extra cost to you (variations); or
- unexpected events occur which cause delays to developing the project or the construction works.

We understand that more detailed consideration of your **Total Project Cost** may require adjustments to the funds available for the **Cost of Works**.

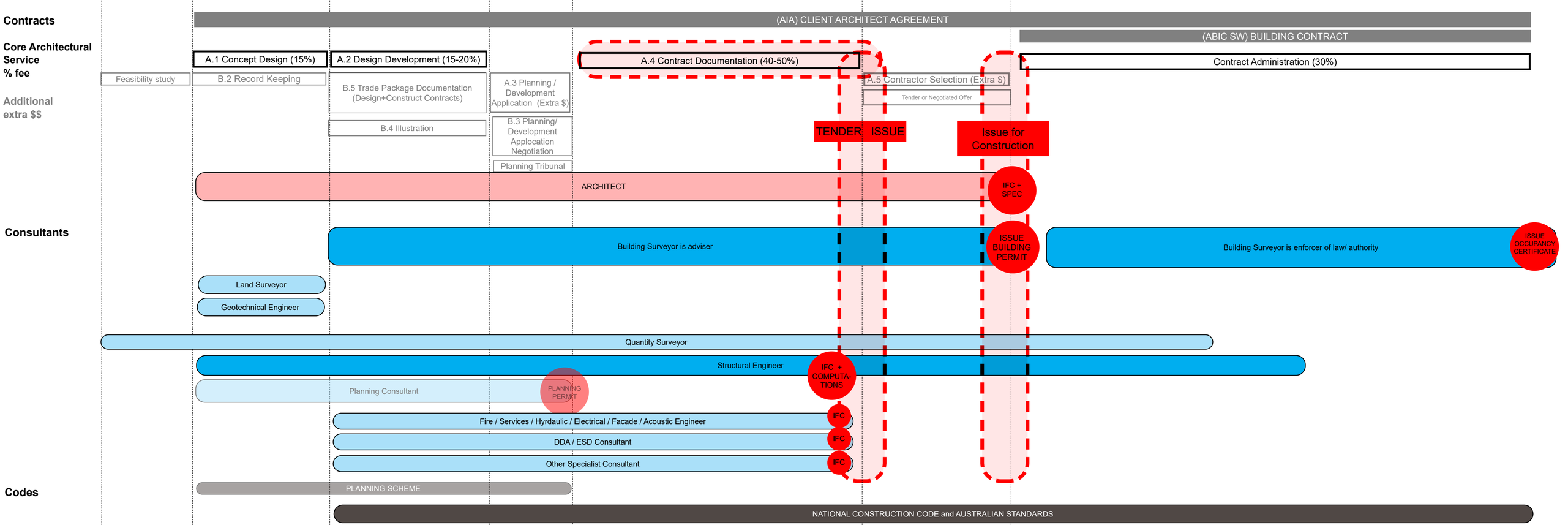
CAA Letter- Justify how your fee, services, variations and communications will work

PROFESSIONAL PRACTICE 1

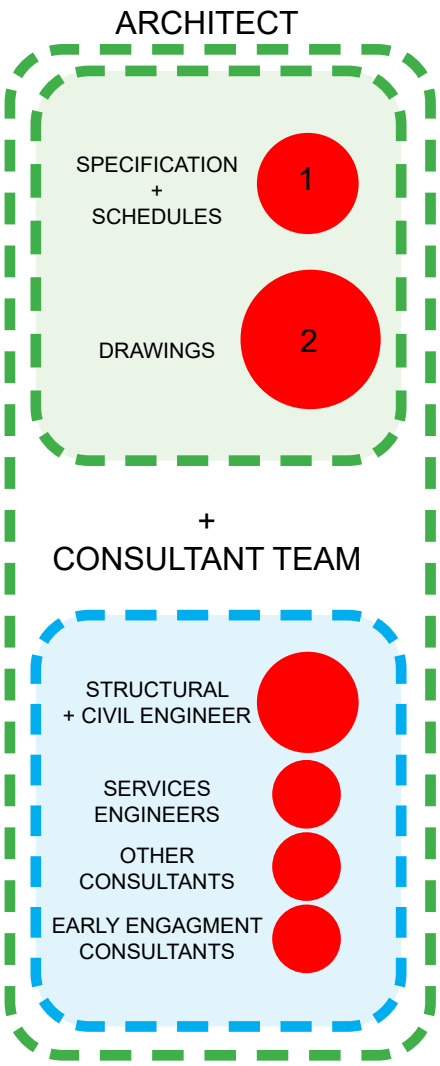
ARCH 1331

CONTRACT DOCUMENTATION + TENDERING

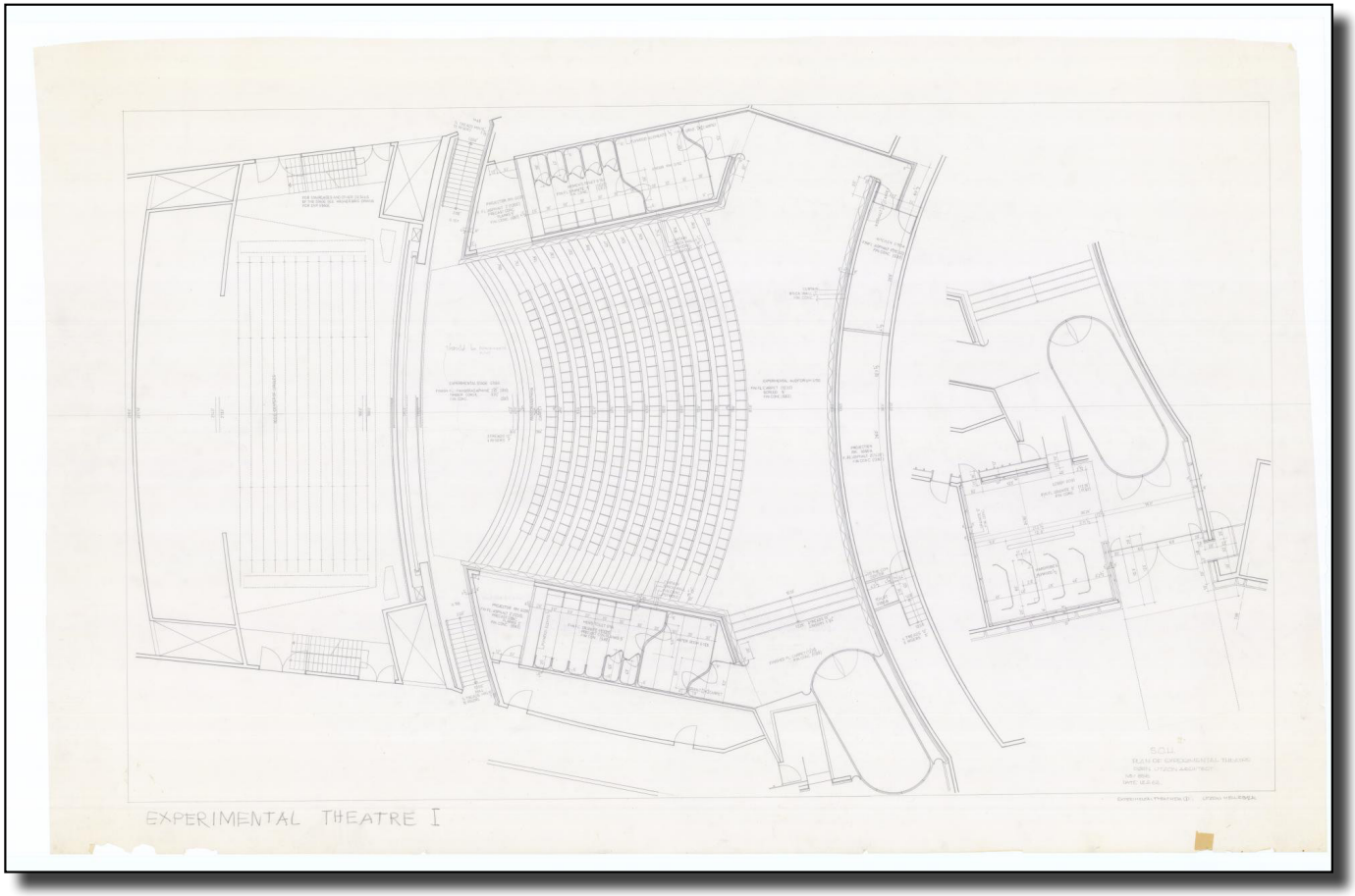
Helen Duong | RMIT Architecture



From Uncertainty to Commitment: Description, Cost + Risk



Contract Documentation Set



© Utzon Archives / Aalborg University & Utzon Center.

Contract Documentation: Describing What is to be Built

Organised by order of construction.

Written description. Self contained.

SCOPE (extent of works that this section covers)

Refers to STANDARDS (Australian Standards referenced)

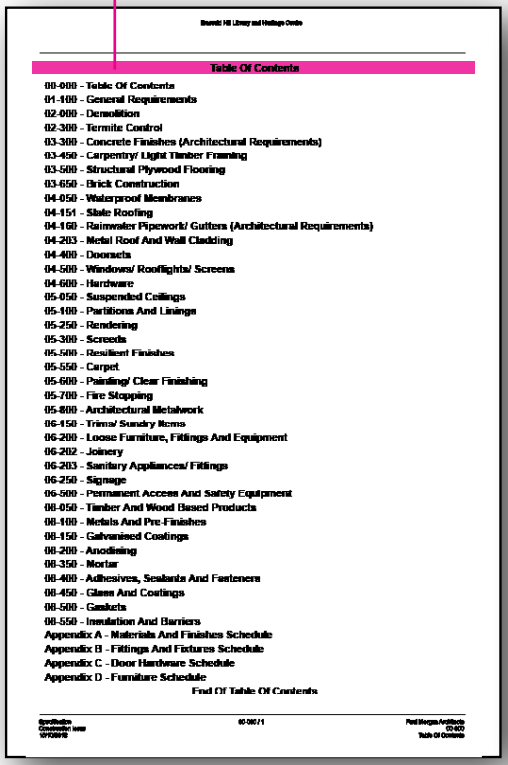
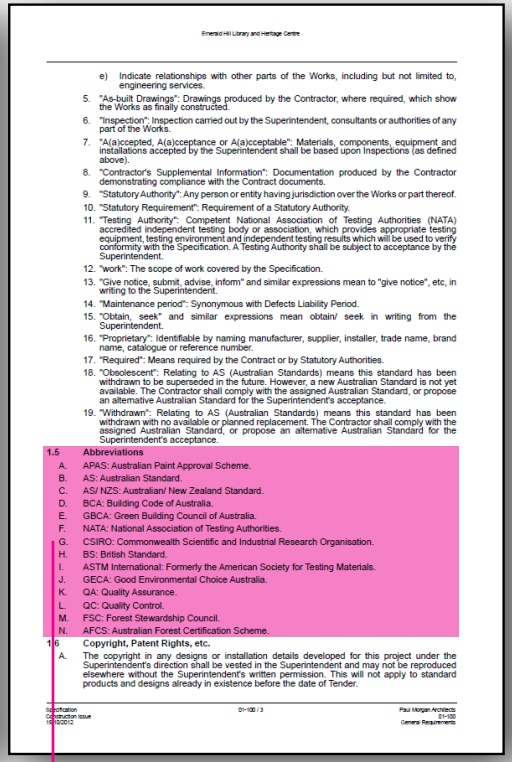


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00-000 - Table Of Contents
01-100 - General Requirements
02-000 - Demolition
02-300 - Termite Control
03-300 - Concrete Finishes (Architectural Requirements)
03-450 - Carpentry/ Light Timber Framing
03-500 - Structural Plywood Flooring
03-650 - Brick Construction
04-050 - Waterproof Membranes
04-151 - Slate Roofing
04-160 - Rainwater Pipework/ Gutters (Architectural Requirements)
04-203 - Metal Roof And Wall Cladding
04-400 - Doorsets
04-500 - Windows/ Rooflights/ Screens
04-600 - Hardware
05-050 - Suspended Ceilings
05-100 - Partitions And Linings
05-250 - Rendering
05-300 - Screeds
05-500 - Resilient Finishes
05-550 - Carpet
05-600 - Painting/ Clear Finishing
05-700 - Fire Stopping
05-800 - Architectural Metalwork
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06-200 - Loose Furniture, Fittings And Equipment
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06-500 - Permanent Access And Safety Equipment
08-050 - Timber And Wood Based Products
08-100 - Metals And Pre-Finishes
08-150 - Galvanised Coatings
08-200 - Anodising
08-350 - Mortar
08-400 - Adhesives, Sealants And Fasteners
08-450 - Glass And Coatings
08-500 - Gaskets
08-550 - Insulation And Barriers
Appendix A - Materials And Finishes Schedule
Appendix B - Fittings And Fixtures Schedule
Appendix C - Door Hardware Schedule
Appendix D - Furniture Schedule

End Of Table Of Contents



e) Indicate relationships with other parts of the Works, including but not limited to, engineering services.

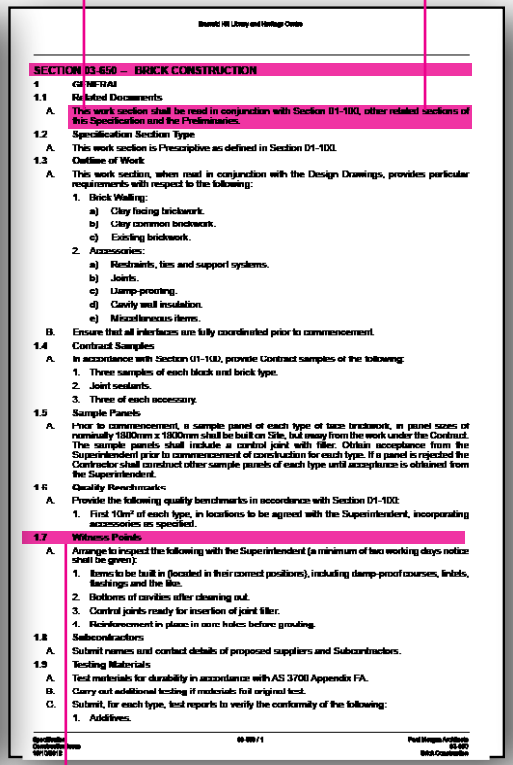
5. "As-built Drawings": Drawings produced by the Contractor, where required, which show the Works as finally constructed.
6. "Inspection": Inspection carried out by the Superintendent, consultants or authorities of any part of the Works.
7. "A(a)ccepted, A(a)cceptance or A(a)cceptable": Materials, components, equipment and installations accepted by the Superintendent shall be based upon Inspections (as defined above).
8. "Contractor's Supplemental Information": Documentation produced by the Contractor demonstrating compliance with the Contract documents.
9. "Statutory Authority": Any person or entity having jurisdiction over the Works or part thereof.
10. "Statutory Requirement": Requirement of a Statutory Authority.
11. "Testing Authority": Competent National Association of Testing Authorities (NATA) accredited independent testing body or association, which provides appropriate testing equipment, testing environment and independent testing results which will be used to verify conformity with the Specification. A Testing Authority shall be subject to acceptance by the Superintendent.
12. "work": The scope of work covered by the Specification.
13. "Give notice, submit, advise, inform" and similar expressions mean to "give notice", etc, in writing to the Superintendent.
14. "Maintenance period": Synonymous with Defects Liability Period.
15. "Obtain, seek" and similar expressions mean obtain/ seek in writing from the Superintendent.
16. "Proprietary": Identifiable by naming manufacturer, supplier, installer, trade name, brand name, catalogue or reference number.
17. "Required": Means required by the Contract or by Statutory Authorities.
18. "Obsolescent": Relating to AS (Australian Standards) means this standard has been withdrawn to be superseded in the future. However, a new Australian Standard is not yet available. The Contractor shall comply with the assigned Australian Standard, or propose an alternative Australian Standard for the Superintendent's acceptance.
19. "Withdrawn": Relating to AS (Australian Standards) means this standard has been withdrawn with no available or planned replacement. The Contractor shall comply with the assigned Australian Standard, or propose an alternative Australian Standard for the Superintendent's acceptance.

1.5 Abbreviations

A. APAS: Australian Paint Approval Scheme.
B. AS: Australian Standard.
C. AS/ NZS: Australian/ New Zealand Standard.
D. BCA: Building Code of Australia.
E. GBCA: Green Building Council of Australia.
F. NATA: National Association of Testing Authorities.
G. CSIRO: Commonwealth Scientific and Industrial Research Organisation.
H. BS: British Standard.
I. ASTM International: Formerly the American Society for Testing Materials.
J. GECA: Good Environmental Choice Australia.
K. QA: Quality Assurance.
L. QC: Quality Control.
M. FSC: Forest Stewardship Council.
N. AFCS: Australian Forest Certification Scheme.

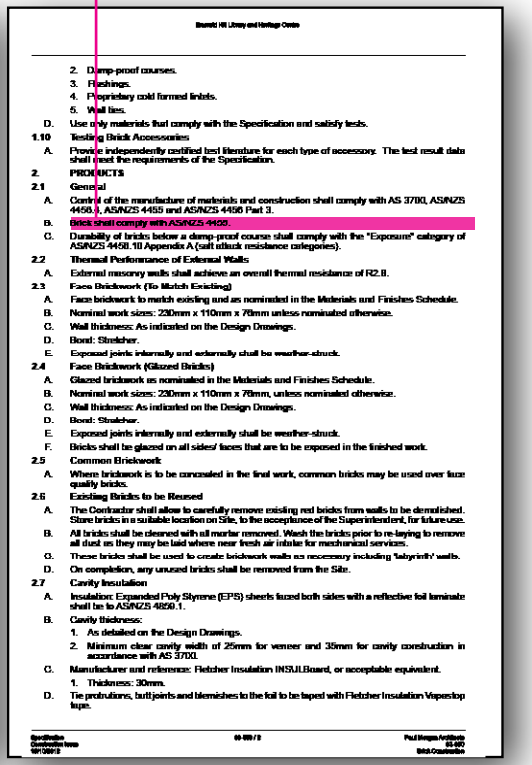
1.6 Copyright, Patent Rights, etc.

A. The copyright in any designs or installation details developed for this project under the Superintendent's direction shall be vested in the Superintendent and may not be reproduced elsewhere without the Superintendent's written permission. This will not apply to standard products and designs already in existence before the date of Tender.



SECTION 03-650 – BRICK CONSTRUCTION

1 GENERAL
1.1 Related Documents
A. This work section shall be read in conjunction with Section 01-100, other related sections of this Specification and the Preliminaries.
1.2 Specification Section Type
A. This work section is Prescriptive as defined in Section 01-100.
1.3 Outline of Work
A. This work section, when read in conjunction with the Design Drawings, provides particular requirements with respect to the following:
1. Brick Walling:
a) Clay facing brickwork.
b) Clay common brickwork.
c) Existing brickwork.
2. Accessories:
a) Restraints, ties and support systems.
b) Joints.
c) Damp-proofing.
d) Cavity wall insulation.
e) Miscellaneous items.
B. Ensure that all interfaces are fully coordinated prior to commencement.
1.4 Contract Samples
A. In accordance with Section 01-100, provide Contract samples of the following:
1. Three samples of each block and brick type.
2. Joint sealants.
3. Three of each accessory.
1.5 Sample Panels
A. Prior to commencement, a sample panel of each type of face brickwork, in panel sizes of nominally 1800mm x 1800mm shall be built on Site, but away from the work under the Contract. The sample panels shall include a control joint with filler. Obtain acceptance from the Superintendent prior to commencement of construction for each type. If a panel is rejected the Contractor shall construct other sample panels of each type until acceptance is obtained from the Superintendent.
1.6 Quality Benchmarks
A. Provide the following quality benchmarks in accordance with Section 01-100:
1. First 10m² of each type, in locations to be agreed with the Superintendent, incorporating accessories as specified.
1.7 Witness Points
A. Arrange to inspect the following with the Superintendent (a minimum of two working days notice shall be given):
1. Items to be built in (located in their correct positions), including damp-proof courses, lintels, flashings and the like.
2. Bottoms of cavities after cleaning out.
3. Control joints ready for insertion of joint filler.
4. Reinforcement in place in core holes before grouting.
1.8 Subcontractors
A. Submit names and contact details of proposed suppliers and Subcontractors.
1.9 Testing Materials
A. Test materials for durability in accordance with AS 3700 Appendix FA.
B. Carry out additional testing if materials fail original test.
C. Submit, for each type, test reports to verify the conformity of the following:
1. Additives.



2. Damp-proof courses.
3. Flashings.
4. Proprietary cold formed lintels.
5. Wall ties.
D. Use only materials that comply with the Specification and satisfy tests.
1.10 Testing Brick Accessories
A. Provide independently certified test literature for each type of accessory. The test result data shall meet the requirements of the Specification.
2. PRODUCTS
2.1 General
A. Control of the manufacture of materials and construction shall comply with AS 3700, AS/NZS 4455.1, AS/NZS 4455 and AS/NZS 4456 Part 3.
B. Brick shall comply with AS/NZS 4455.
C. Durability of bricks below a damp-proof course shall comply with the "Exposure" category of AS/NZS 4455.10 Appendix A (salt attack resistance categories).
2.2 Thermal Performance of External Walls
A. External masonry walls shall achieve an overall thermal resistance of R2.8.
2.3 Face Brickwork (To Match Existing)
A. Face brickwork to match existing and as nominated in the Materials and Finishes Schedule.
B. Nominal work sizes: 230mm x 110mm x 76mm unless nominated otherwise.
C. Wall thickness: As indicated on the Design Drawings.
D. Bond: Stretcher.
E. Exposed joints internally and externally shall be weather-struck.
2.4 Face Brickwork (Glazed Bricks)
A. Glazed brickwork as nominated in the Materials and Finishes Schedule.
B. Nominal work sizes: 230mm x 110mm x 76mm, unless nominated otherwise.
C. Wall thickness: As indicated on the Design Drawings.
D. Bond: Stretcher.
E. Exposed joints internally and externally shall be weather-struck.
F. Bricks shall be glazed on all sides/ faces that are to be exposed in the finished work.
2.5 Common Brickwork
A. Where brickwork is to be concealed in the final work, common bricks may be used over face quality bricks.
2.6 Existing Bricks to be Reused
A. The Contractor shall allow to carefully remove existing red bricks from walls to be demolished. Store bricks in a suitable location on Site, to the acceptance of the Superintendent, for future use.
B. All bricks shall be cleaned with all mortar removed. Wash the bricks prior to re-laying to remove all dust as they may be laid where near fresh air intake for mechanical services.
C. These bricks shall be used to create brickwork walls as necessary including 'labyrinth' walls.
D. On completion, any unused bricks shall be removed from the Site.
2.7 Cavity Insulation
A. Insulation: Expanded Poly Styrene (EPS) sheets faced both sides with a reflective foil laminate shall be to AS/NZS 4859.1.
B. Cavity thickness:
1. As detailed on the Design Drawings.
2. Minimum clear cavity width of 25mm for veneer and 35mm for cavity construction in accordance with AS 3700.
C. Manufacturer and reference: Fletcher Insulation INSULBoard, or acceptable equivalent.
1. Thickness: 30mm.
D. Tie protrusions, butt joints and blemishes to the foil to be taped with Fletcher Insulation Vapestop tape.

Refers to other STANDARDS

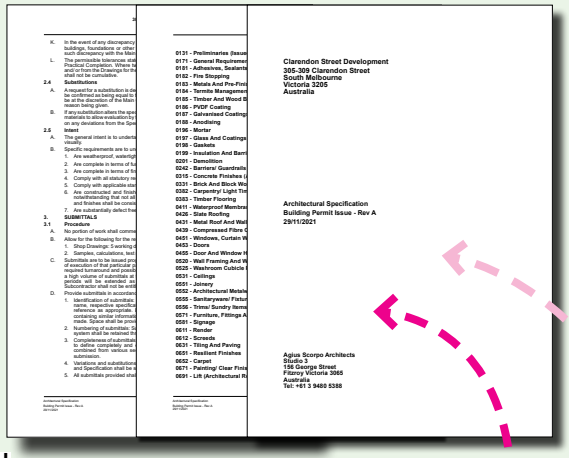
HOLD POINT & SAMPLES for inspection by Architect and Building Surveyor.

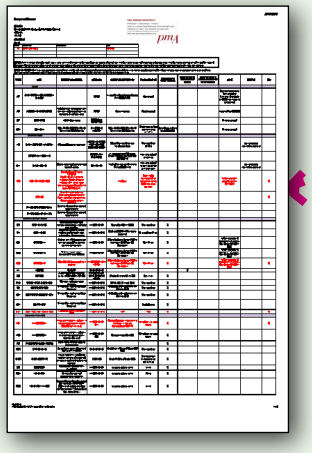
Specification: Defining Quality + Performance

ARCHITECTURAL TENDER ISSUE

1

SPECIFICATION
+
SCHEDULES

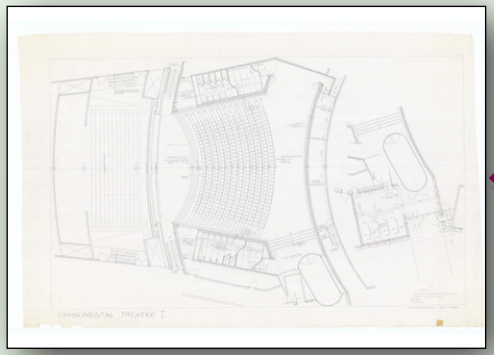




Path of Reference

2

DRAWINGS



2.4 Substitutions

A. A request for a substitution is deemed to be a warranty to the Principal. Such substitutions shall be confirmed as being equal to the original nominated in the documents. Any substitution shall be at the discretion of the Main Contractor and Superintendent and may be rejected without a reason being given.

B. If any substitution alters the specified requirements, submit sufficient information on substituted materials to allow evaluation by the Superintendent and relevant member/s of the Design Team on any deviations from the Specification.

Context of construction sequence, standards & laws

Pre-existing information that already exists

X. Exterior Cladding

Code	Location	Detail	Image	Rev
X.CO1	Refer Architectural Drawings	TEXTURED PRE-CAST CONCRETE PANEL A Product: Precast Concrete - Textured Pattern: Custom Form Liner Finish: Face Finish Colour: White Code: Section 0315 (Specification)		
X.CO2	Central Stair Core	TEXTURED PRE-CAST CONCRETE PANEL B Product: Precast Concrete - Textured Pattern: Reckli Formliner 1/39 Rippe Type L Finish: Face Finish Colour: White Code: Section 0315 (Specification)		
X.CO3	North Facade	PRE-CAST CONCRETE PANEL Product: Finish: Class 2 Code: Section 0315 (Specification)		
X.CO4	Entry Courtyard & Ground Floor Lobby	OFF-FORM CAST CONCRETE PLINTH/PLANTER Product: In-situ cast concrete furniture Finish: Class 1 - Sealer to be confirmed Code: Section 0315 (Specification)		

Context of visual appearance, performance requirements manufactuer

Relationship to patents, products.

Demonstrates the moment Architects make a determination and judgement of equivalency.



Context of arrangement, adjacencies, locations

The typical understanding and format for architecture.

Multiple Descriptions of Architecture based on context

Specification: Turning Requirements into Contractual Information

Reference to Specification

Reference to Specification

Product Selection

307-309 Clarendon Street South Melbourne
Project Schedules

Must be read in conjunction with:
ARCHITECTURAL SPECIFICATION (BUILDING PERMIT ISSUE 29.11.2021)

CONTRACT ISSUE_REV A

Issue	Date	Revision
DD - Preliminary	25.05.2020	DD
DD - Preliminary	11.06.2020	DD1
DD - Preliminary	03.07.2020	DD2
CD - Preliminary for ECI	23.07.2020	ECI.1
CONTRACT ISSUE	02.07.2021	A
BUILDING PERMIT 02 ISSUE	29.11.2021	B

A S A

A S A

1705 CLAR
29/11/2021 - REV B
SCHEDULE 02
Materials & Finishes

X. Exterior Cladding

Code	Location	Detail	Image	Rev
X.CO1	Refer Architectural Drawings	TEXTURED PRE-CAST CONCRETE PANEL A Product: Precast Concrete - Textured Pattern: Custom Form Liner Finish: Face Finish Colour: White Code: Section 0315 (Specification)		
X.CO2	Central Stair Core	TEXTURED PRE-CAST CONCRETE PANEL B Product: Precast Concrete - Textured Pattern: Reckli Formliner 739 Rippe Type L Finish: Face Finish Colour: White Code: Section 0315 (Specification)		
X.CO3	North Facade	PRE-CAST CONCRETE PANEL Product: Finish: Class 2 Code: Section 0315 (Specification)		
X.CO4	Entry Courtyard & Ground Floor Lobby	OFF-FORM CAST CONCRETE PLINTH/PLANTER Product: In-situ cast concrete furniture Finish: Class 1 - Sealer to be confirmed Code: Section 0315 (Specification)		
X.CP1	Ground Floor Shopfront & Oculus Window	COPPER LOOK ALUMINIUM CLADDING SYSTEM Manufacturer: HVG Facades Product: MondoClad Finish: Copper Penny Code:		
X.BR1	South Wing Wall	EXTERNAL BRICKWORK TO MATCH EXISTING HERITAGE BRICKS Note: Refer Heritage Report for detailed description		
X.FC1	South Soffit to Tenancy 3	FIBRE CEMENT SHEET Product: Finish: Paint Finish Code: Colour : Black		B
X.LV1	East Elevation	ALUMINIUM ARCHITECTURAL LOUVRE Manufacturer: Holyoake Product:100mm vertical louvre Finish: Powdercoat Monument Code: OVL - 99		

Proprietary Product

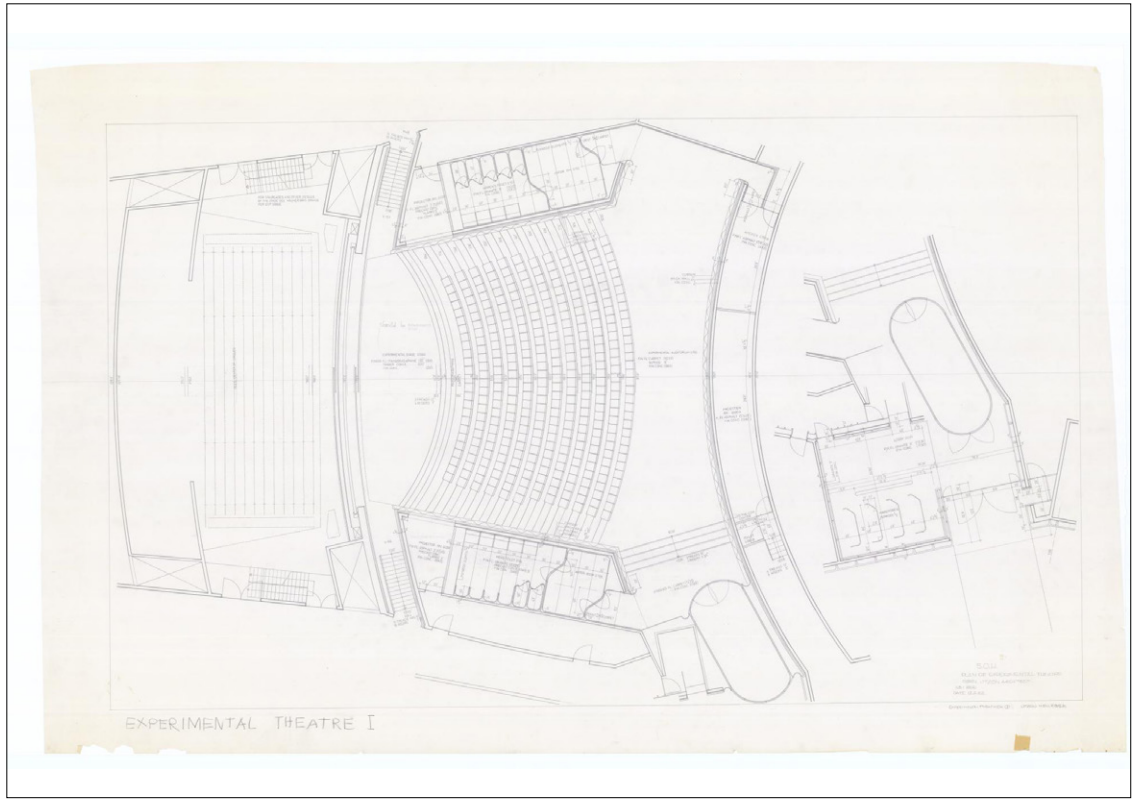
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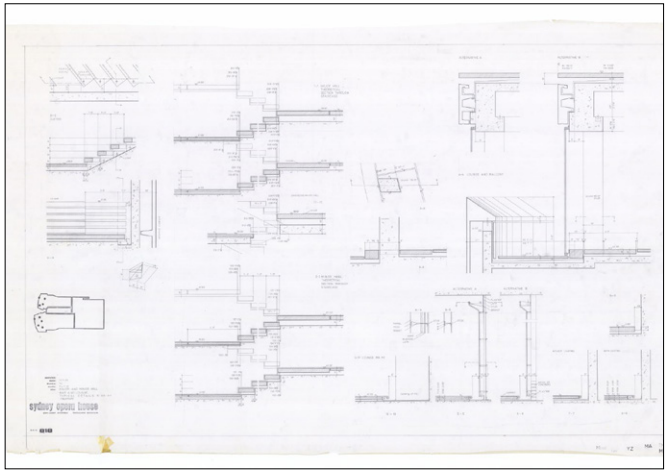
1705 CLAR
29/11/2021 - REV B
SCHEDULE 06
Fixtures & Fittings Schedule

End Of Trip Facilities (8.08, 8.10)

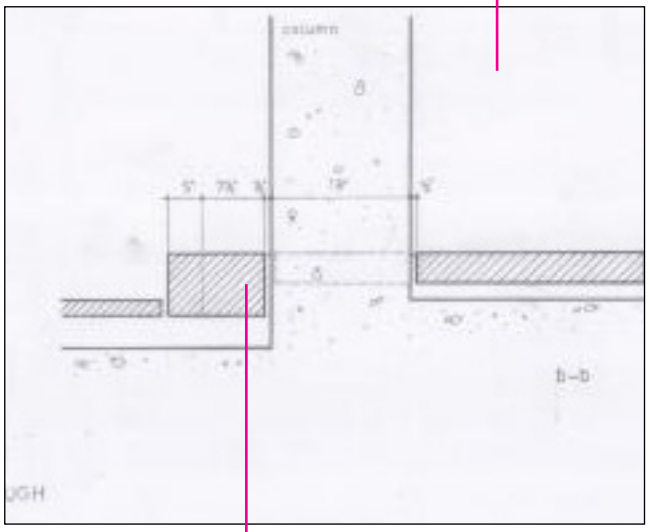
Code	Product	Qty.	Image	Supplier	Rev
BM.1	BASIN OUTLET Manufacturer: Milli Product: Pure Wall Basin O/Let 200 MB (3*) Finish: Black Code: 2281228	6		Reece	A
	Manufacturer: Milli Product: Pure Wall Basin O/Let 200 MB (3*) Finish: Black Code: 2281228				
BM.1	BASIN MIXER Manufacturer: Milli Product: Pure Prog Shower Mixer Diamond MB Finish: Black Code: 2281228	6		Reece	A
VB.1	VANITY BASIN (EOT) Manufacturer: Alape Product: Unisono Counter Basin 375 Nth M/B Finish: Matt Black Code: 9506941	6		Reece	A
VA.1	VANITY STAND (EOT) Manufacturer: Zuster Product: CUSTOM Finish: TBC	1		* Client Supply	A
MI.1	WALL MIRROR Manufacturer: Zuster Product: Custom Finish: - Code: -			* Client Supply	A
MX.1	SHOWER MIXER Manufacturer: Milli Product: Pure Prog Shower Mixer Diamond MB Finish: Matt Black Code: 2224549	6		Reece	A
SH.1	SHOWER ROSE Manufacturer: Methven Product: Aio Aurajet O/Head Shwr MB (3*) Finish: Black Code: 2262354	6		Reece	A

Schedules: Making Project-Specific Selections Explicit



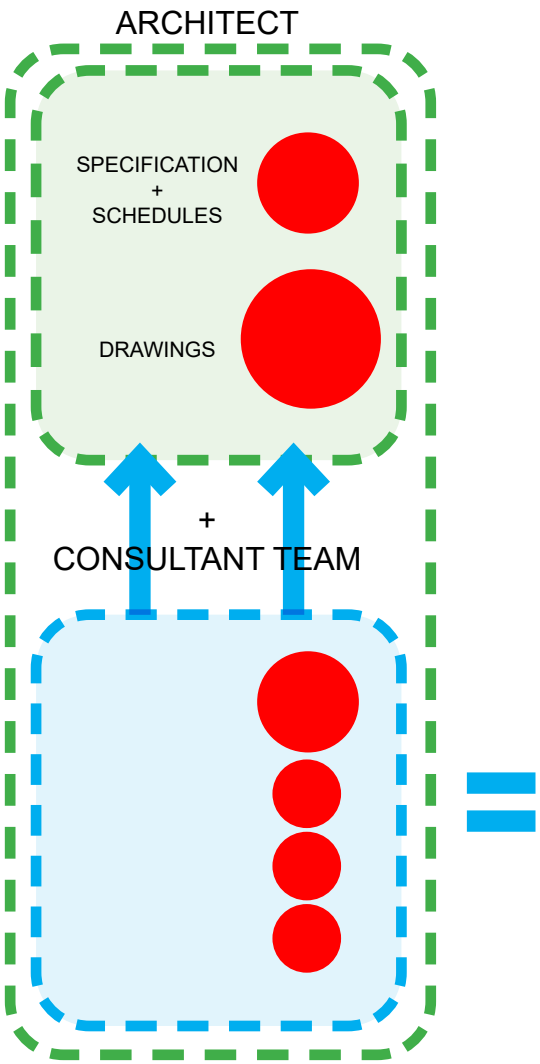


Material Codes



Schedule Codes

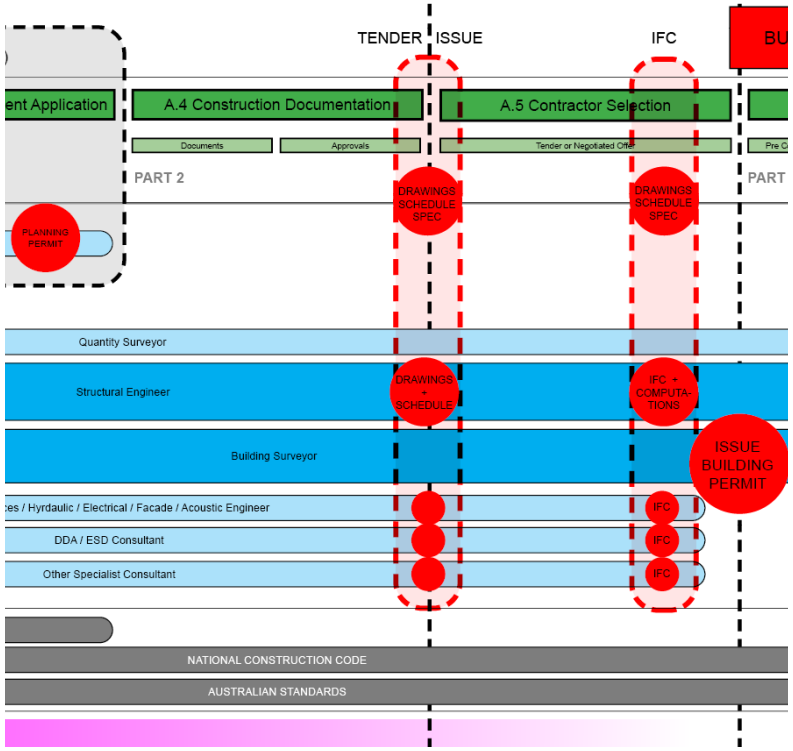
Drawings: Coordinating + Communicating the Building



=

CONSULTANT TEAM

- Planning Consultant
- Land Surveyor
- Geotechnical Engineer
- Quantity Surveyor
- Structural Engineer
- Building Surveyor
- Fire / Services / Hyrdaulic / Electrical / Facade / Acoustic Engineer
- DDA / ESD Consultant
- Other Specialist Consultant



Consultant Coordination: Integrating Specialist Knowledge

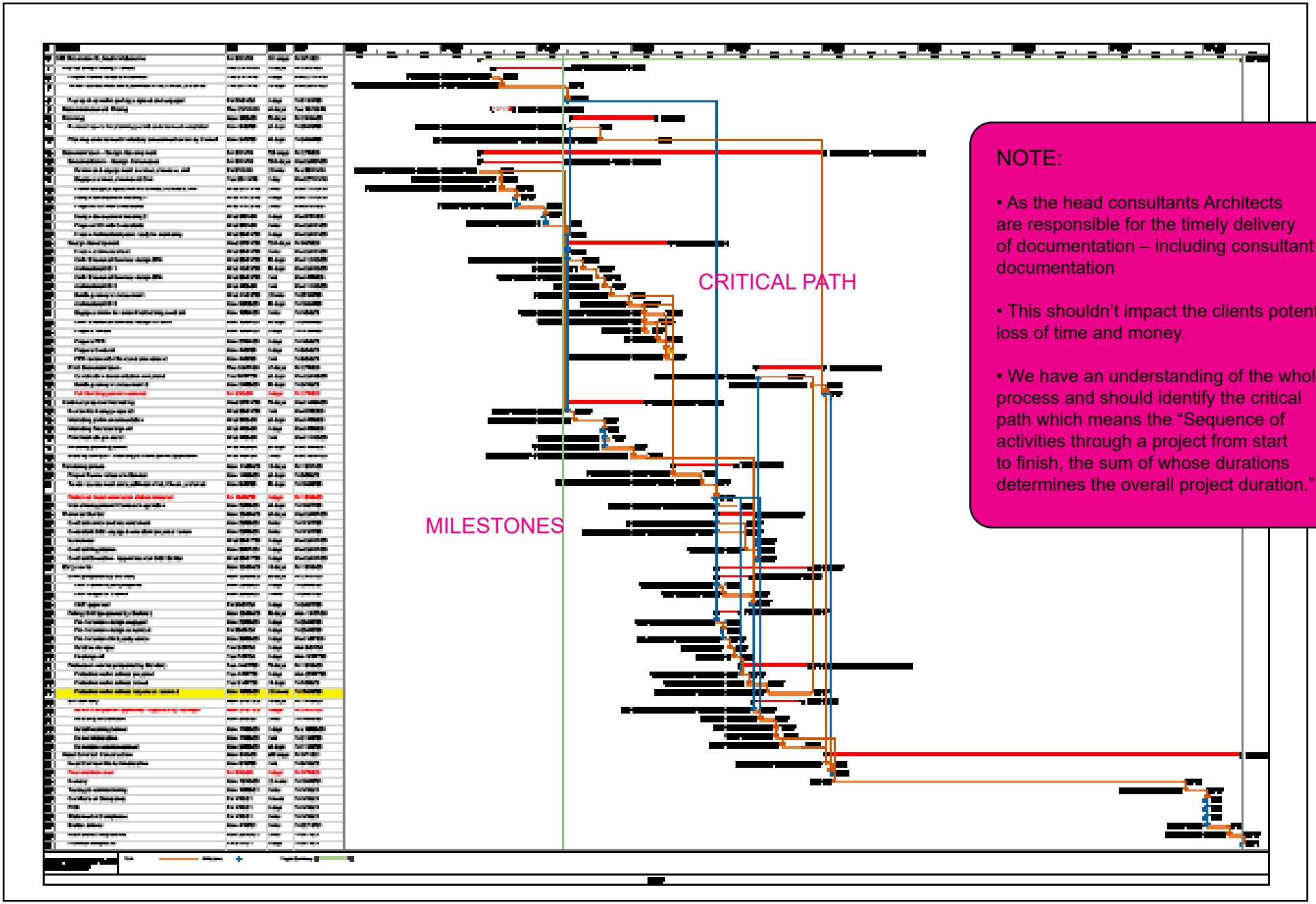
CONSULTANT COORDINATION RESPONSIBILITIES

- controlling the timely output of secondary consultants
- getting subconsultants to coordinate with one another
- ensuring consultants have the latest documents
- dealing with scope changes in fixed price contracts
- losing a subconsultant

- The Architects is responsible for ensuring there are no clashes within the architecture!!

TIMELINE

STAGES AS THEY APPEAR IN CAA



NOTE:

- As the head consultants Architects are responsible for the timely delivery of documentation – including consultant documentation
- This shouldn't impact the clients potential loss of time and money.
- We have an understanding of the whole process and should identify the critical path which means the "Sequence of activities through a project from start to finish, the sum of whose durations determines the overall project duration."

Programme: Managing Time + Dependencies

305-309 Clarendon Street, South Melbourne

Cost Plan No.1

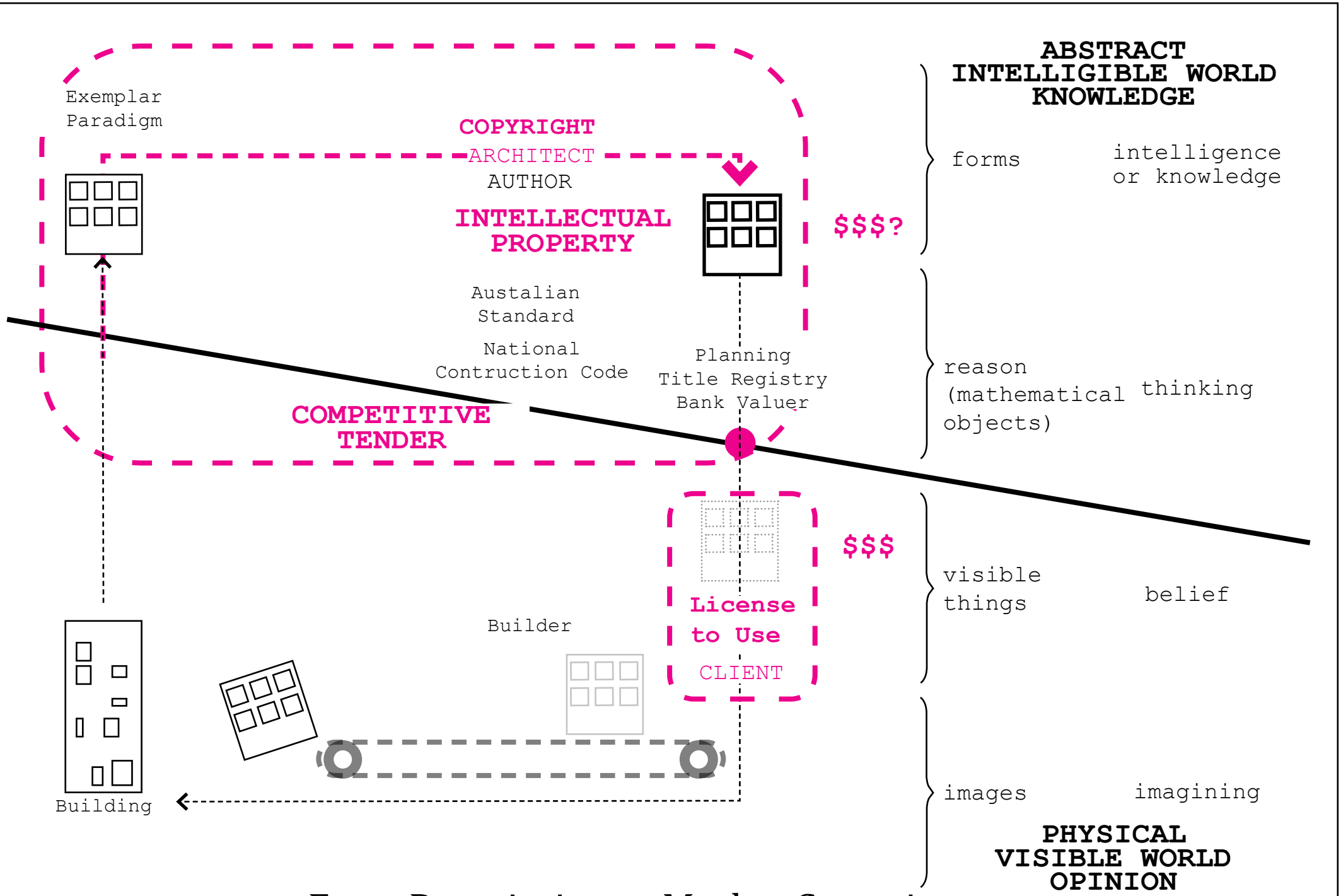
Functional Area	Scope	Area (m^2)	Rate ($/m^2$)	Total ($)
Construction Cost				
Early Works / Demolition	Allowance	924 m2	684	632,000
Basement	New Build	278 m2	3,896	1,083,000
Heritage	Refurbishment	620 m2	1,774	1,100,000
New Build	New Build	1,895 m2	3,180	6,026,000
Terrace	New Build	76 m2	2,105	160,000
Car Stacker System	New Build	9 no	36,778	331,000
Latent Conditions	Allowance	1 Item	173,000	173,000
ESD Initiatives	Allowance	1 Item	161,000	161,000
Total Building Cost		**3,793 m2**	**2,547**	**9,662,000**
External Works and Services	New Build	508 m2	638	324,000
Total Building and External Works & Services Costs		**4,301 m2**	**2,322**	**9,986,000**
Design Contingency		5.00 %	100,000	500,000
Construction Contingency		5.00 %	105,000	525,000
Escalation To Start		2.00 %	110,500	221,000
Escalation To Finish		4.00 %	112,500	450,000
Total Construction Cost		**4,301 m2**	**2,715**	**11,679,000**
Project Costs				
Consultant Fees		10.00 %	116,800	1,168,000
Furniture, Fittings & Equipment		Note		Excluded
ICT & AV		Note		Excluded
Specialist Equipment		Note		Excluded
Authority Charges & Headworks		1.00 %	117,000	117,000
Other Project Costs		Note		
Total Project Costs		**4,301 m2**	**3,014**	**12,964,000**
Total End Cost		**4,301 m2**	**3,014**	**12,964,000**

This cost plan is based on preliminary information and therefore should be regarded as indicative only of the possible order of cost. All components of the cost plan will require confirmation once further documentation is available. Refer to the accompanying letter for details of basis of cost plan and exclusions from above costs.

New Build

No	Description	Quantity	Unit	Rate	Total
1	Allowance for automated stacker door (13500m wide)	1	No	45,000	45,000
	External Doors Total				**62,000**
	Internal Walls				
2	Allowance for party wall between heritage and new build	58	m2	250	14,500
3	Allowance for reinforced concrete core walls	578	m2	350	202,300
4	Allowance for stud wall including insulation, plasterboard and paint	512	m2	250	128,000
	Internal Walls Total				**344,800**
	Internal Doors				
5	Single solid swing door including frame and hardware	21	No	1,800	37,800
6	Double solid swing door including frame and hardware	2	No	3,500	7,000
7	Single glazed swing door including frame and hardware	3	No	3,500	10,500
8	Double glazed swing door including frame and hardware to tenancies	5	No	7,500	37,500
	Internal Doors Total				**92,800**
	Wall Finishes				
9	Tiles to wet areas (PC supply rate @ $60/m2 as advised Agius Scorpo)	318	m2	200	63,600
10	Paint finish to ground floor BOH	65	m2	25	1,625
11	Allowance for feature wall finish to lift lobbies	333	m2	350	116,550
12	No finishes to tenancies - cold shell		Note		
	Wall Finishes Total				**181,775**
	Floor Finishes				
13	Allowance for tiles to entry foyer & lift lobbies (PC supply rate @ $150/m2 as advised by Aglus Scorpo)	197	m2	265	52,205
14	Allowance for tiling to wet areas (PC supply rate @ $60/m2 as advised Agius Scorpo)	131	m2	180	23,580
15	Exposed structural slab to tenancies - cold shell	1,567	m2	0.00	0
	Floor Finishes Total				**75,785**
	Ceiling Finishes				
16	Allowance for plasterboard ceiling finishes to common spaces and wet areas	328	m2	120	39,360
17	Exposed structural slab to tenancies - cold shell	1,567	m2	0.00	0
	Ceiling Finishes Total				**39,360**
	Fitments				
18	Arrival seat to entry foyer	7	m	2,000	14,000
19	Banquette seating to lift lobbies	12	m	2,000	24,000

Cost Planning: Managing Uncertainty as Design Develops



From Description to Market Commitment



Tendering is a Professional + Ethical Process

PREFACE

This Standard was prepared by the Standards Australia Committee on Construction Industry Practice to supersede AS 4120(Int)—1993, *Code of tendering*.

The previous edition of this Standard was developed and issued to public comment by the Construction Industry Development Agency (CIDA) Code of Practice Working Party and forwarded to the Standards Australia Committee on Construction Industry Practice for endorsement as an Interim Australian Standard.

This edition incorporates the following major changes from the previous edition:

(a) Clause 6.1.1—includes a statement on project funding.

(b) Clause 6.1.2—expands on the objectives of the tender documents.

(c) Clause 6.1.3—includes a statement on the application of pre-qualification criteria.

(d) Clause 6.2.1—includes a statement on commitment to proceed with project.

(e) Clause 6.2.2—expands on inclusions in the advertisement.

(f) Clause 6.5—clarifies tender requirements and tender evaluation criteria.

(g) Clause 8—includes a statement on commercial in confidence.

NOTES:

1 In developing this Standard, Recommendations 6, 11 and 12, 13 and 20 of the Construction Industry Development Agency's Report on Security of Payment, were taken into consideration in Clauses 6.1.1, 6.1.2(h), 6.6 and 6.12(e) respectively. Recommendation 10 of that Report recommends the use of this Standard. Users may refer to that report for further information concerning CIDA's Security of Payment recommendations.

2 The Principal should recognize the cost of preparing tenders, especially in the case of certain procurement systems, which require Tenderers to prepare documentation (including design or the preparation of alternative proposals) as part of their tender. In appropriate circumstances this may require the Principal to consider payment to Tenderers to offset these costs.

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CONSTRUCTION INDUSTRY DEVELOPMENT AGENCY

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3 DEFINITIONS 5
4 ETHICS 5
5 TENDERING PROCEDURES 6
6 OBLIGATIONS OF THE PRINCIPAL 6
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8 CONFIDENTIALITY 11

FOREWORD

The purpose of this Standard is to encourage high ethical standards in tendering in the construction industry, in the belief that significant benefits will flow to the entire community through the delivery of higher productivity, high quality construction work, better working conditions and elimination of malpractice. It constitutes a statement of the ethics which underline best-practice tendering procedures. It imposes an obligation on all those parties to refuse to condone unethical behaviour by others in the industry.

Inherent in adoption of this Standard is a willingness to deal only with industry organizations and personnel whose standards of performance and behaviour conform to those expected by this Standard.

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Tendering: Fairness, Transparency + Defined Obligations

STANDARDS AUSTRALIA

Australian Standard

Code of tendering

1 SCOPE This Standard sets out the ethics and the obligations of the Principal and Tenderers in tendering in the construction industry. A separate Standard covers the selection of consultants providing professional services.

2 APPLICATION This Standard applies equally to Principals, their agents, contractors, subcontractors and suppliers and their associations and professional organizations.

3 DEFINITIONS

3.1 Construction industry—includes all building, refurbishment, maintenance, civil engineering, process engineering, mining and heavy engineering projects. It excludes cottage construction.

3.2 Intellectual property—all copyright, patents and all rights in relation to inventions, registered and unregistered trademarks (including service marks), registered designs, circuit layouts and all other rights resulting from intellectual activity in the industrial, scientific, literary or artistic fields.

3.3 Principal—any party inviting and receiving tenders. A Principal may include a contractor or subcontractor.

3.4 Tenderer—any party submitting tenders, including contractor, subcontractor and supplier.

4 ETHICS This Standard is based on the following principles:

(a) Tendering at all levels in the construction industry shall be conducted honestly and in a manner that is fair to all parties involved.

(b) Parties shall comply with all legislative obligations including those required by trade practices and consumer affairs legislation.

(c) The Principal shall have regard to the costs of tendering and the number of Tenderers, recognizing that the cost of tendering is a significant industry overhead.

(d) Tenderers shall only tender where they intend to carry out the work.

(e) The Principal shall call for tenders only after the Principal has arranged funding for the project and has made a firm commitment to proceed with the project.

(f) The conditions of tendering shall be the same for each Tenderer.

(g) Parties shall not engage in practices such as collusion on tenders, inflation of prices to compensate unsuccessful Tenderers, secret commissions, or any other such improper arrangements.

(h) The Principal and Tenderers shall be prepared to attest to their probity, if necessary by Statutory Declaration or other reasonable means.

(i) Tender documents shall specify the Principal's requirements as clearly and precisely as possible and, when documents are altered, sufficient time shall be allowed for all Tenderers to review and revise their tenders.

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(j) The Principal shall specify what information in the tender documents is required to be treated by Tenderers as confidential. However, it is acceptable to have public openings of tenders and disclosure of tender prices.

(k) Any party with a conflict of interest shall immediately disclose that conflict of interest.

(l) Tenderers shall retain their right to intellectual property submitted with tenders, including title thereto.

5 TENDERING PROCEDURES The following procedures give practical effect to the principles contained in this Standard.

6 OBLIGATIONS OF THE PRINCIPAL

6.1 Pre-tender

6.1.1 *Project definition* The Principal shall ensure that the project brief is clear and specific and adequately defines the project for which tender documents are to be prepared. Adequate time shall be allowed by the Principal for project definition, design and documentation.

The Principal shall ensure that quality assurance principles apply to the entire process of defining and documenting the Principal's requirements as well as to the design and construction processes.

The Principal shall use best endeavours to select a procurement strategy best suited to the project to be undertaken, bearing in mind the advice of its consultants.

The Principal shall arrange adequate finance to carry out the project. An officer of the Principal who is in a position to know, shall provide to the Tenderers particulars of such project funding arrangements.

6.1.2 *Tender documents* Documentation shall be complete, bearing in mind the procurement strategy, so as to enable the Tenderer to prepare and complete its tender. The Principal shall have regard to the costs to the industry and the community at large. For instance, the Principal shall avoid the requirement to price multiple options or repeated rounds of tendering.

The tender documents shall conform to the following objectives:

(a) Clearly state the contractual obligations of the parties including, for instance, responsibility for safety matters and industrial relations.

(b) Provide full details of all work required to be covered by the tender.

(c) Provide all information known to the Principal which is relevant to enable Tenderers to evaluate the risks in the project.

(d) The Principal shall ensure that the time allowed for both tendering and construction is reasonable.

(e) Use General Conditions of Contract that are standard in the industry and use Special Conditions only when there are special circumstances warranted by specific site and project requirements. General Conditions of Contract including Special Conditions should observe the principle that the party best able to control a risk should bear that risk.

(f) Clearly identify any Special Conditions required to be included in the contract which are not normally part of the General Conditions of Contract.

(g) Clearly identify any supporting information required from Tenderers.

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Tendering Methods: Different Ways of Structuring Competition + Risk

(h) Clearly state whether each Tenderer is required to state the Tenderer's main subcontractors, or a small panel from which those main subcontractors will be selected, for that project.

(i) Nominate a person for the provision of additional information.

(j) Provide positive encouragement to Tenderers to incorporate maximum innovation while still satisfying the Principal's basic commercial and technical objectives, by allowing them to submit options in addition to a conforming tender.

(k) Avoid Tenderers having to provide undue amounts of design and documentation work prior to the acceptance of a tender, unless the Principal offers to pay for such design work.

(l) Specify the method and time of lodgement of tenders, opening of tenders and public acknowledgment of Tenderers.

(m) Where appropriate, provide guidance to Tenderers as to the process of evaluation of tenders.

(n) Specify the tender validity period.

(o) Inform Tenderers of their obligation to comply with this Standard.

(p) Clearly state any Code of Practice which is applicable.

6.1.3 *Selecting tenderers* In determining who shall be invited to tender, the Principal shall, where appropriate, apply pre-qualification criteria and take into account compliance with any applicable Code of Practice.

The Principal shall not discriminate against a prospective Tenderer who declines an invitation to tender.

The Principal shall be expected to provide equal opportunity to all prospective Tenderers who are able to demonstrate their ability to carry out the work.

6.2 Tendering

6.2.1 *General* The Principal has an obligation to arrange the project funding before commencing the tendering process. Having called tenders, the Principal recognizes the commitment to proceed with the project.

6.2.2 *Call for tenders* The Principal shall allow sufficient time between inviting tenders and the closing of tenders, for Tenderers to make site visits and undertake any other work necessary to allow them to respond fully. The Principal shall make the site reasonably available for inspection by Tenderers.

Where tenders are advertised, the advertisement shall include the following:

(a) An adequate description of the work required.

(b) Details of when and where tender documents may be obtained.

(c) Details of when and where tenders shall close.

(d) The tender validity period.

(e) Details of any tender documentation deposit or purchase price required, if applicable, and the method of obtaining a refund of that cost.

(f) Whether and, if so, what Code of Practice is applicable.

(g) The name, address and telephone number of the Principal's appropriate contact person.

(h) Whether the Principal will be providing an 'in house' tender price as part of the tender process.

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In relation to Clause 6.2.2(h), Principals should have regard to the fact that the practice of a Principal providing an 'in house' tender price as part of the tender process is seen as contrary to the normal commitment of a Principal to proceed with the most advantageous tender. Public companies, when contemplating an 'in house' tender, should also have regard to the requirements of PART 3.2A of the Corporations Law.

6.2.3 *Tendering methods* While it is the prerogative of the Principal to use any method of selection, contracts would normally be entered into as a result of one of the following procedures:

(a) *Selected tenders* The Principal may maintain a register of approved prospective Tenderers whose capability has been confirmed. A small number of registrants is invited to tender on an appropriate rotational basis. The Principal should regularly advertise for prospective Tenderers wishing to be considered for inclusion on the register and regularly review and amend the register.

(b) *Open tenders* The Principal invites by public advertisement without restriction on the number of tenders sought. The Principal would normally require Tenderers to prove they have the necessary competence, resources, industrial relations, quality and safety management and financial capacity to carry out the work. The Principal may maintain a register of prospective Tenderers whose capability has been confirmed.

(c) *Preregistered tenders* The Principal invites expressions of interest for preregistration for a specific project or specific types of projects. Applicants are evaluated and a small number of those meeting the required criteria are invited to tender.

(d) *Invited tenders* The Principal invites tenders from a number of prospective Tenderers known to have the ability to undertake a project of the type proposed.

(e) *Negotiation* The Principal negotiates with a single prospective Tenderer to achieve an acceptable tender. Negotiations shall be carried out in good faith.

6.2.4 *Tender inquiries* The Principal shall not give to any Tenderer information that is not also given to all other Tenderers.

The Principal shall nominate a person with knowledge of the work required to respond to all inquiries from Tenderers. All such inquiries shall be recorded, noting time and date of receipt and the issue discussed.

Where an inquiry reveals a significant error, omission, ambiguity or discrepancy in the tender documents, the information provided to resolve the error, omission, ambiguity or discrepancy shall be promptly conveyed in writing to all Tenderers.

Where briefing meetings are held for Tenderers, such meetings shall be minuted. The minutes shall be forwarded to all Tenderers, and become a part of the tender documents.

6.2.5 *Amendments to tender documents* The Principal has an obligation to avoid amendments to the tender documents.

Where matters of significance make it necessary to amend tender documents during the tender period, the amendments shall be advised as an addendum forwarded to all Tenderers in sufficient time for all Tenderers to consider the addendum properly and fully before tenders close.

Where appropriate, the tender period shall be extended when an addendum is issued.

The addendum shall state clearly that it is meant to be incorporated in the tender documents.

Tenderers shall be required to confirm its receipt in writing, and should be required to confirm in their tenders that allowance has been made for each addendum. Minor changes to tender documents may be dealt with in precontract negotiations.

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6.3 Receipt of tenders All arrangements necessary shall be made to safeguard the security and confidentiality of all tenders. No information provided in a tender by a Tenderer shall be divulged by the Principal to another Tenderer at any stage during the tender process or after it has concluded. However it is acceptable to have public openings of tenders and disclosure of tender prices, provided it is advised in advance in the tender documents.

Late tenders shall not be accepted, except where it is both clear that circumstances beyond the Tenderer's control were the cause of lateness and that the integrity of the tendering process will not be compromised by accepting a late tender. Where a late tender is received, the time and date of receipt shall be noted on the document and endorsed by the recipient.

6.4 Closing of tenders It should be accepted procedure for the closing of tenders to be as follows:

(a) Not earlier than 2.00 p.m.

(b) Not on a Monday or day following a public holiday.

(c) At least one clear day after a weekend, building industry holiday or rostered day off.

(d) At least one week after the recognized industry Christmas close down.

6.5 Evaluation of tenders Any tender which does not comply with the tender documents is liable to be rejected.

The tender most advantageous to the Principal should be considered for acceptance.

The Principal may reject any tender provided the Principal acts honestly and with probity in so doing.

Tenderers may be encouraged to offer alternative proposals which shall satisfy the Principal's requirements. Principals shall specify the conditions under which alternative proposals are to be submitted. Unless otherwise stated, alternative proposals should only be considered when submitted with a conforming tender.

Where a Tenderer offers an alternative proposal, comparable prices for the alternative shall not be obtained by the Principal from other Tenderers nor shall the alternative be used as the basis for the re-call of tenders. However with the written consent of the Tenderer submitting the original alternative design or method of construction, the Principal may re-tender or require re-pricing of tenders incorporating alternative designs or methods of construction.

If the Principal decides not to accept any tender and to re-call tenders, the original Tenderers shall be advised of the reasons for re-calling and, as a general principle where appropriate, invited to submit a new tender.

If a previous tender condition which prevented a Tenderer from submitting a tender is removed, that Tenderer should be permitted to submit a new tender when re-called.

Evaluation of tenders and Tenderers should include consideration of the following:

(a) Compliance with pre-qualification criteria and the applicable Code of Practice.

(b) Conformity with the tender documents.

(c) Value for money.

(d) Construction period.

(e) Technical, managerial, physical and financial resources.

(f) Other commitments affecting capacity to carry out the contract.

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Each of these factors may have a varying weighting or priority depending on the Principal and project involved. Tender evaluation criteria should be advised to the Tenderers.

6.6 Negotiation and selection In post-tender negotiations, the Principal shall not engage in unconscionable conduct by trading off different Tenderer's prices against others in an attempt to seek lower prices.

The Principal should first exhaust negotiations with the initially preferred Tenderer, before negotiating with a subsequent Tenderer.

If none of the tenders is acceptable, negotiations for an amended tender may be conducted, in the first instance, with the initially preferred Tenderer.

The successful Tenderer and the price which was accepted should be disclosed in writing to the Tenderers.

7 OBLIGATIONS OF TENDERERS

7.1 Call for tenders Tenderers shall only submit tenders if they genuinely believe they have the competence and capacity to undertake the work being offered.

In the case of selected, preregistered or invited tenders, a Tenderer may decline to tender, and should promptly advise the Principal of this decision.

7.2 Return of tender documents Unsuccessful Tenderers shall return tender documents to the Principal, provided Tenderers are informed of this requirement prior to receiving the documents.

7.3 Evaluation of tender documents Tenderers shall thoroughly familiarize themselves with the documents, and the site upon which the project is to be constructed, and if in doubt seek clarification from the Principal, to ensure that their tenders are complete and reflect a full understanding of the documents and the work required.

No Tenderer shall seek or expect to be given information that is not also provided to all other Tenderers.

During the tender period, Tenderers shall promptly advise the Principal of errors, omissions, ambiguities or discrepancies in the tender documents of which they become aware.

7.4 Formulation of tenders No Tenderer shall engage in any uncompetitive behaviour or other practice which denies legitimate business opportunities to other Tenderers or other participants in the tender process including, but not limited to the following:

(a) The payment of unsuccessful tender fees.

(b) The payment to any third party of moneys, incentives or other concessions contingent upon the success of the tender, which do not relate to the provision of bona fide services relevant to the object of the tender.

Tenderers shall observe all relevant statutory and other legal requirements in the formulation of their tenders and shall not—

(i) accept or provide secret commissions;

(ii) collude with other Tenderers;

(iii) submit inflated tenders (i.e. cover prices) to advantage another Tenderer;

(iv) enter any improper commercial arrangements with any other contractors, subcontractors, suppliers, agents or any other party;

(v) seek to influence contract decisions by improper means; or

(vi) accept incentives to provide contracts or services to other contractors, subcontractors or suppliers which financially disadvantage the Principal.

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7.5 Submission of tenders As a safeguard against malpractice, Tenderers or, where the Tenderer is a corporation, a representative of the Tenderer, shall, if requested by the Principal, demonstrate or attest to:

(a) Whether the Tenderer has entered into any contract, arrangement or understanding to pay any moneys to an association and, if so, the details of the contract, arrangement or understanding.

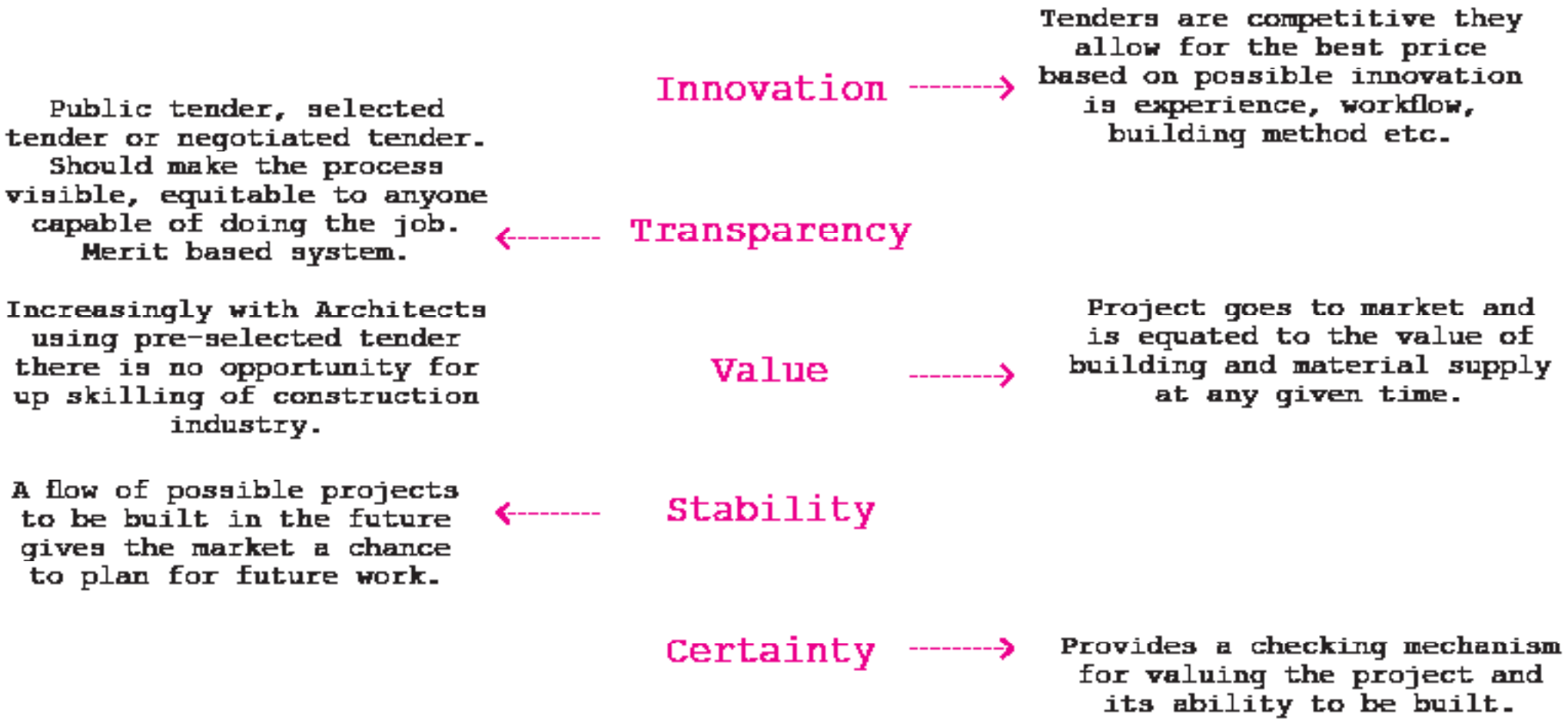
(b) Whether the Tenderer has entered directly or indirectly into any contract, arrangement or understanding with any other Tenderer, and if so, the details of that contract, arrangement or understanding.

(c) Whether the Tenderer has entered into any contract, arrangement or understanding with anyone else which shall or may have the effect of increasing the tender price of all Tenderers.

(d) Whether the Tenderer has any knowledge of the tender price or cover price or a price which can be used as a cover price of any other Tenderer and, if so, the details of that knowledge.

8 CONFIDENTIALITY All information provided between Tenderers and the Principal shall be treated as confidential information. Both the Tenderer and Principal shall undertake to maintain that information as confidential and commercial in confidence.

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Tendering: Issuing a Common Set of Information

ECI TENDER
AS OPENDED TENDER COMPARISON SCHEDULE BVIA ON BANK
[redacted]
16/09/2020

ITEM	FOURSQ	TYCORP	MABEN	SINJEN	AMBER					
RANKING		2	1	4	3	5 (Outlier)				
AS OPENED PRICE		$ 9,502,333.00		$ 9,499,410.00		$ 10,404,852.00	$ 10,053,346.00	$ 10,976,570.00		
AS OPENED VALUE MANAGEMENT PRICE					$ 8,102,333.00	$ 8,207,593.00	$ 10,176,852.00	Not Provided	Not Provided	
NORMALISED PRICE			$ 9,688,333.00		$ 9,612,410.00	$ 10,791,852.00	$ 10,246,346.00			
NORMALISED PRICE INCLUDING VALUE MANAGEMENT						$ 8,855,083.00	$ 8,526,052.00	$ 10,403,852.00	$ 9,551,346.00	
ECI FEE	$ 20,000.00		$ -		$ 61,920.00	-	$ 148,931.00			
PROGRAMME (DAYS)			258	288	280	281	231			
WORKING WEEK		5	6	5	5	Not Provided				
KEY PERSONNEL (WOMEN)			3	3	2	1	2			
COMPANY PERSONEL (WOMEN)				Low	Equal	Low	Low	Equal		
INSURANCES		Y	Y	Y	Y	Y				
CONSTRUCTION MANAGEMENT PLAN				Y	Y	Y	N	N		
ADDENDA ACKNOWLEDGEMENT				Y	Y	Y	N	N		
CONSTRUCTION METHODOLOGY, SITE ESTABLISHMENT, TRAFFIC MGT							N	Y	Y	N	N
TENDER VALIDITY		30 Days	90 Days	90 Days	90 Days	-				
PRICE BREAKDOWN (AS OPENED)										
Preliminaries			$ 1,215,819.00				$ 1,499,860.00			
ECI Fee	$ 20,000.00		$ -		$ 61,920.00		$ -	$ 148,931.00		
Fixed Preliminaries		$ 1,292,356.00			$ 1,638,829.00	$ 1,604,720.00	Inc			
Fixed Margin		Incl	$ 365,362.00		$ 350,000.00	$ 800,000.00	$ 997,870.00			
Traffic Management		$ 31,000.00		Incl	$ 647,457.00	$ 100,000.00	Inc			
Demolition		$ 99,450.00		$ 120,940.00		$ 94,000.00	$ 111,000.00	$ 75,000.00		
Piling and Excavation/Substructure				$ 333,544.00		$ 322,914.00	$ 301,915.00	$ 324,500.00	$ 373,846.00	
Concrete Structure		$ 1,754,769.00		$ 1,114,810.00		$ 1,111,643.00	$ 1,558,753.00	$ 1,953,919.00		
Timber Structure		$ 71,666.00		$ 156,259.00		$ 95,099.00	$ 234,306.00	$ 172,897.00		
Structural Steel		$ 144,800.00		$ 104,951.00		$ 129,136.00	$ 72,886.00	$ 163,885.00		
Brickwork/Blockwork		$ 152,648.00		$ 145,828.00		$ 121,300.00	$ 134,709.00	$ 178,612.00		
External Walls, Windows and Doors				$ 895,741.00		$ 1,625,630.00	$ 1,457,515.00	$ 1,051,903.00	$ 926,207.00	
Internal Walls, Windows & Doors				$ 89,731.00		$ 667,525.00	$ 743,563.00	$ 338,709.00	Incl	
Heritage Building Windows			Provisional Sum		$ 3,400.00	$ 38,520.00	$ 102,498.00	$ 26,250.00		
Roof	$ 171,420.00		$ 177,000.00		$ 150,880.00	$ 89,323.00	$ 108,482.00			
Staircases	Incl	$ 9,000.00		Incl	Inc					
Joinery & Fitments		$ 136,159.00		$ 11,550.00		$ 91,933.00	$ 56,345.00	$ 72,775.00		
Floor Finishes		$ 382,572.00		$ 100,553.00		$ 293,265.00	$ 274,355.00	$ 293,417.00		
Ceiling Finishes		$ 466,447.00		$ 18,737.00		Incl in Internal Walls	Incl	$ 199,815.00		
Wall Finishes		Incl	$ 57,750.00		$ 78,405.00	Incl	$ 375,607.00			
Painting	$ 96,958.00		$ 109,655.00		$ 83,095.00	$ 77,640.00	$ 81,545.00			
Metal Work		$ 454,505.00		$ 119,654.00		$ 163,940.00	$ 128,155.00	$ 131,758.00		
Landscaping		$ 110,311.00		$ 116,932.00		$ 98,302.00	$ 241,636.00	$ 109,466.00		
Hydraulic Services		$ 487,385.00		$ 438,000.00		$ 449,083.00	$ 354,200.00	$ 532,488.00		
Electrical Services		$ 746,310.00		$ 640,217.00		$ 714,720.00	$ 901,095.00	$ 718,461.00		
Mechanical Services		$ 795,000.00		$ 848,500.00		$ 911,140.00	$ 852,000.00	$ 948,670.00		
Fire Services		$ 151,174.00		$ 202,440.00		$ 147,452.00	$ 105,824.00	$ 345,606.00		
Lift Services		$ 286,035.00		$ 498,785.00		$ 200,940.00	$ 291,690.00	$ 479,200.00		
Ground Floor, Lift Lobby and End of Trip Fitout (Excl Demarcating Walls and Services)							$ 162,752.00	$ 307,199.00	Incl	Incl	Inc
Labour (Installation of End of Trip and Bathroom Joinery, Sanitary Fixtures and Fittings)							Incl	Incl	$ 9,000.00	Incl	Inc
Site Preparation & Protection Works				Incl	Incl	Incl in Civil/Demo	Incl	Inc			
Civil Works		Incl	Incl	$ 42,700.00		Incl	Inc				
Roads Footpaths & Paved areas			Incl	Incl	Excluded	Excluded	$ 33,934.00				

Tender Evaluation: From Price to Contractual Commitment

From Professional Judgement to Recorded Action

What document needs to be issued?

Who has authority to decide? → Who needs to know? → What changed? → What are the consequences for scope/time/cost/quality? → What document records the decision?
